



The Transformation of State Socialist Rule of Law into Party-State Socialist Rule of Law in the Xi Jinping Era

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Abstract

Xi Jinping Thought on Rule of Law is a central component of Xi Jinping Thought on Socialism with Chinese Characteristics for a New Age, which has now been incorporated into the PRC Constitution. Given that Xi has consolidated power as the “core” of the Party and will lead China for the indefinite future, it is imperative that we better understand what his conception of rule of law is. In my view, there has been a fundamental change under General Secretary Xi, which can be conceptualized as a turn away from state socialist rule of law toward a new hybrid Party-state socialist rule of law model. Part 1 provides an overview of early debates about legal reforms and rule of law prior to Xi’s new contributions to legal thought. Part 2 describes the new direction under Xi, wherein the role of the Party has emerged from the shadows and assumed a central place under the banner of “socialist rule of law with Chinese characteristics” based on “comprehensive rules-based governance.” Part 3 takes up the theoretical and practical challenges arising from the Party-state socialist rule of law model. The main thrust of this section is to address broader questions such as is Party-state socialist rule of law with Xi Jinping characteristics rule of law at all? If so, does this new conception of rule of law constitute a theoretical breakthrough and a significant improvement over the previous conception of state socialist rule of law? Will this new conception of socialist rule of law play the geopolitical role Xi hopes it will by challenging the globally dominant liberal democratic conception of rule of law, thus increasing China’s global reputation and soft power?

After laying largely dormant for decades, theoretical debates about the nature of the PRC legal system have reached a fever pitch in recent years.¹ Legal scholars are all

¹ For an overview and critical analysis of the debates about the nature of the legal system in the 1980s and 1990s, see Keith (1994) and Peerenboom (2002a, b). See also Lavicka, this volume.

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in a tizzy, and deeply divided about the nature, significance and wisdom of recent developments. Some see China turning away from law.² Others see a turn toward legality,³ albeit a turn toward authoritarian⁴ or illiberal legality as opposed to liberal legality (Seppänen 2019). Still others depict the rise of a prerogative state,⁵ an empowering state (Jiang 2019), or a system of partocracy (Guo 2020). Each of these views has been met with varying degrees of joy and support, or alarm and dismay, depending on one's theoretical commitments and political leanings.

Chinese officials, for their part, continue to claim substantial progress in legal reforms and to celebrate milestones in the establishment of “socialist rule of law” (State Council 2008, 2012) with then NPC Chairman Wu Bangguo proudly proclaiming, somewhat prematurely, the completion of the construction of China's socialist legal system in 2011 (State Council 2011).⁶ In recent years, there has been a veritable deluge of official statements as well as academic books and articles dutifully lauding the revolutionary, paradigm-changing theoretical advancements of Xi Jinping Thought on Rule of Law with its emphasis on “comprehensive rules-based governance” and “socialist rule of law with Chinese characteristics.”⁷ Howling in protest at such outlandish claims, liberal critics continue to dismiss the significance of legal reforms, stridently condemning China as an authoritarian, if not totalitarian, system of rule by law,⁸ with one American professor of Chinese law even denying that China has a legal system (Clarke 2022).

What are we to make of all these deeply conflicting views of the PRC legal system? Why are these debates arising now? Has there been a fundamental change in the direction of legal reforms in China? If so, how best should we describe and conceptualize it? What are the theoretical and practical implications of the new direction? And perhaps most importantly, how should we evaluate the new model? Is it a

² Minzner (2011). For a critique and opposing view, see Peerenboom (2014a) and Chen (2012).

³ Zhang and Ginsburg (2019). But see Clarke (2020), questioning whether China even has a legal system.

⁴ See, e.g., Gallagher (2017), and several of the chapters in Chen and Fu (2020).

⁵ Fu (2019a) and Horsley (2019). For critiques of the applicability of the dual state theory to China, see Clarke (2022), Seppänen (2022) and Peerenboom (2024), Part IV (discussing the pros and cons of various ways of describing, conceptualizing, and assessing China's legal system, including rule of law and various alternatives such as rule by law, authoritarian legality, and the dual state theory, as well as Clarke's view that China lacks a *legal* system).

⁶ China's current five-year plan for rule of law more modestly promises “a more complete system of governing the country in accordance with law by 2025” and then “by 2035, a rule of law country, a rule of law government, and a rule of law society will be basically completed.” Plan on Building the Rule of Law in China (2020–2025) (chinalawtranslate.com).

⁷ Xi (2015) (excerpts of Xi's speeches from 2012 to 2015); *Xi Jinping Fazhi Sixiang Gailun* [An Introduction to Xi Jinping Thought on Rule of Law] 2012.

⁸ The Chinese legal system is regularly described as rule by law both by foreign legal scholars and the media. There is less consensus about whether China should be described as an authoritarian state, a totalitarian state, a neo-authoritarian state, or an authoritarian state with totalitarian leanings (Babones 2021). The U.S. State Department describes China as an “authoritarian state in which the Chinese Communist Party (CCP) is the paramount authority.” Human Rights Watch describes China as “a one-Party authoritarian state that systemically curbs fundamental rights” (Edward 2020).

good thing or bad thing, overall? What goals is it meant to serve? *Whose* goals is it meant to serve? Who are the winners and the losers?

I shall argue that there has indeed been a fundamental change under General Secretary Xi, which can be understood and conceptualized as a turn away from state socialist rule of law toward a new hybrid Party-state socialist rule of law model.

Part 1 provides an overview of early debates about legal reforms and rule of law prior to Xi's new contributions to legal thought. Legal theorists debated a wide range of issues in the mid-1980s through the incorporation of "rule the country according to law, establish a socialist rule of law state" into the PRC Constitution in 1999. The next decade and a half witnessed a continuation of efforts to fill out the legislative framework, create the institutional architecture necessary for a modern legal system, build state capacity and enhance the competence of legal sector actors. Essentially, there was a sustained effort to improve the legal system and make it more compliant with thin rule of law requirements.⁹ But in theoretical terms, the dominant characteristic of this period was an uneasy truce between those who continued to hold out hope for greater separation between the Party and state and those who advocated for open recognition of the leadership role of the Party.

Part 2 describes the new direction under Xi, wherein the role of the Party has emerged from the shadows (Chen 2016) and assumed a central place under the banner of "socialist rule of law with Chinese characteristics" based on "comprehensive rules-based governance."

Essentially, Xi has set out a three-part agenda. The first part, which falls under the rubric of "governing the Party in accordance with rules," is an attempt to regularize the system of intra-Party rules, the functional equivalent of thin "rule of law" reforms for the Party system, although strictly speaking they are not "rule of law" reforms in the traditional sense in that Party rules are not formal state laws or part of the state constitutional order.

The second part, which falls under the rubric of the organic unity of the Party and state systems, attempts to clarify the rules, norms and conventions that intermediate between the Party and state systems. One component involves adjustment in the roles of the Party and the state, in some cases shifting responsibilities and functions from Party organs to the state, but more often consolidating power in Party organs. A second component involves the repurposing of existing institutions, such as political-legal committees, and the creation of new institutions, including institutions that result from the merger of existing Party and state organizations. This second part remains the least understood. While there have been efforts to think through the many theoretical and practical issues that this process of intermediation will give rise to, whether the various forms of intermediation are compatible with general rule of law principles is contested in theory and remains to be seen in practice as the more mature system takes shape and empirical work is done to better understand the nature of the changes. Normatively, clear divisions have already emerged about the desirability and wisdom of this reform path, which given the current environment will inevitably lead to a greater role for the Party in the political, legal, economic

⁹ See 1.1 below for a discussion of thin versus thick theories of rule of law.

and social spheres. As expected, defenders of liberal democratic rule of law are bitterly opposed to the new direction of reforms under Xi's socialist rule of law with Chinese characteristics, as are many rank-and-file legal professionals.¹⁰ At the other extreme, some Party ideologues believe that Xi's reforms have gone too far in caging the Leviathan—or rather the Dragon—and limiting the exercise of political power given the many international and domestic challenges China is facing as it attempts to avoid the middle-income trap while seeking to realize its core interests in an increasingly fluid and antagonistic friend-enemy geopolitical environment.¹¹

The third part continues reforms of the state legal system, many of which are technical in nature and consistent with ongoing efforts to make the state legal system compliant with thin rule of law requirements in furtherance of the goal to “rule the country in accordance with law and establish a socialist rule of law state.” Despite the general continuity with previous legal sector reforms, there are some notable differences, including an increased attention to ideology—more specifically to ensuring fidelity with Xi Thought and adhering to central policies set by the Party leadership¹²—and a concerted effort to develop “foreign-related rule of law.” Building out China's system of foreign-related law serves both a defensive and a potentially more positive, constructive purpose (Erie 2023a). Defensively, China has passed measures, including its own blocking statutes and an Anti-Foreign Sanctions Law, to fend off what Xi and many other Chinese officials, academics and citizens see as attempts to use international law to intervene in China's sovereign affairs and to contain China in hopes of preventing its economic development and emergence as a global superpower. At the same time, Xi has announced a series of initiatives—the Global Development Initiative, the Global Security Initiative and the Global Civilization Initiative—which Xi and PRC officialdom have portrayed in a more positive light as an important constructive contribution to global governance and “the common destiny for humanity.”

Taken collectively, these changes add up to a new thick conception of rule of law. The overall concept is still socialist rule of law, but in the new Party-state socialist rule of law conception the Party is front and center and firmly in command. While many of the basic value orientations and dominant features are the same, there are some significant differences, the most important being the more robust role for the Party both in terms of its leadership role and in its role in daily governance. The state socialist rule of law conception incorporated a leadership role for the Party, but it was at least formally more constrained to general ideological matters and overall policy formation, with a more limited role in daily governance, which was to be handled primarily by state organs. Many, arguably most, legal scholars and legal reformers in China had assumed that over time the Party's role would become more limited. They envisioned, or at least hoped for, the retreat or withering away of the Party, with the state system assuming more responsibility for daily governance.

¹⁰ Zhang (2021a, b) argues that legal reforms under Xi Jinping will fail to achieve their intended aim unless the CCP returns to the earlier efforts to separate the Party and state.

¹¹ Seppänen (2022), citing the views of “(neo-)conservatively minded scholars” such as Jiang Shigong and Zhi Zhenfeng. An (2013).

¹² For an overview of the ever evolving and constantly expanding Xi Thought, see Tsang and Cheung (2023).

Any such hopes have been decisively crushed under Xi, who has unequivocally and unapologetically called for a more robust role for the Party in all spheres.

Part 3 takes up the theoretical and practical challenges arising from the Party-state socialist rule of law model. Many of the issues are not entirely new but they take on a different inflection in the new system. Other issues, particularly several practical or operational issues, are novel, and will need to be addressed over time as the new rules-based Party system is built out, and the intermediating system of institutions, rules, norms and practices is further developed. But the main thrust of this section is to address broader questions such as is Party-state socialist rule of law with Xi Jinping characteristics rule of law at all? If so, does this new conception of rule of law constitute a theoretical breakthrough and a significant improvement over the previous conception of state socialist rule of law? Will this new conception of socialist rule of law with Chinese characteristics play the geopolitical role Xi hopes it will by challenging, if not outcompeting, the globally dominant liberal democratic conception of rule of law, thus increasing China's global reputation and soft power? If not, what options does Xi have available to revamp socialist rule of law to make it more theoretically consistent and more globally appealing?

Part 4 concludes.

1 An Overview of Legal Theory and Legal Reforms from 1978 Through the 4th Plenum in the Xi Era

1.1 Ruling the Country According to Law and the Establishment of a Socialist Rule of Law State

With the advent of the post-Mao reform era that began under Deng Xiaoping, China set out to rebuild the legal system that had been if not entirely dismantled at least severely hobbled. At the time there were many theoretical debates about the nature of the legal system and what its role should be. Legal theorists and reformers attempted to sort out how rule of law differed from rule of man or rule by law. Drawing on an extensive literature on rule of law in the West, I called attention to the distinction between thin and thick conceptions of rule of law, and then laid out in the form of Weberian ideal types the central differences between the globally dominant thick liberal conception of rule of law, and the still nascent socialist rule of law being developed on the fly in China.¹³ Other scholars debated whether legal reforms

¹³ Theories of rule of law can be divided into two general types, thin and thick. A thin theory stresses the formal or instrumental aspects of rule of law—those features that any legal system must possess to function effectively as a system of laws, regardless of whether the legal system is part of a democratic or non-democratic society, capitalist or socialist, liberal or theocratic. Although proponents of thin interpretations of rule of law define it in slightly different ways, there is considerable common ground, with many building on or modifying Lon Fuller's influential account that laws be general, public, prospective, clear, consistent, capable of being followed, stable and enforced. In contrast, thick or substantive conceptions begin with the basic elements of a thin conception but then incorporate elements of political morality such as particular economic arrangements (free-market capitalism, socialist market economy, etc.), forms of government (democratic, single Party socialism, etc.) or conceptions of human rights (liberal, communitarian, collectivist, "Asian Values," etc.). For a fuller discussion, see Peerenboom (2002a). See

would strengthen Party rule and bolster regime legitimacy or the opposite. Still others saw rule of law as a Western concept that could not be transplanted to China but must be modified in light of China's national circumstances and improved by building on China's native resources. Another line of inquiry sought to sort out the relationship between rule of law and economic growth, judicial independence and human rights.¹⁴

All of these issues and many more were thoroughly vetted throughout the 1980s and 1990s, culminating in the 1999 amendment to the Constitution to "rule the country in accordance with law and establish a socialist rule of law state." After that, in true democratic centralism fashion, the theoretical debates died out and legal scholars moved on to other topics. To be sure, there were still many disagreements over theoretical and normative issues as well as many significant practical problems that would need to be addressed if China were to make good on the new constitutional mandate.

In terms of praxis, China's legal system was too weak institutionally and undeveloped to meet thin rule of law requirements. In general, wealth and rule of law are highly correlated ($r=0.82$). China entered the reform era in 1978 as a low-income country, transitioned to a lower-middle income country in 1999, and then reached upper-middle income in 2010, where it remains.¹⁵

Moreover, the nature of the political and economic system under Mao and the sidelining of many key components of the legal system during the Cultural Revolution meant China's legal system was even weaker and more undeveloped than similar countries at its income level in many respects. Accordingly, major reforms to the legislative system, administrative system, judiciary, public security, legal profession, legal education and other components of a mature legal order were necessary before the legal system could begin to function in a way consistent with thin rule of law requirements. A series of 5-year agendas by the Supreme People's Court ("SPC"), the Supreme People's Procuracy ("SPP") and other state organs provides an overview of the enormity of the challenge. Progress has been impressive.¹⁶

Nevertheless, even Chinese leaders acknowledge that more work remains to be done. The 2014 CCP Central Committee Decision concerning Some Major Issues in

Footnote 13 (Continued)

also Appendix A for a chart comparing liberal democratic rule of law and state socialist rule of law. The chart, which reflects my understanding of state socialist rule of law circa 2000, is useful in explaining what is new, and what is not new, about rule of law in the Xi era. For a similar chart that includes two additional thick conceptions of rule of law (neo-authoritarian and communitarian) and a comparison to rule by law based on the role of the law in the Mao era, see *id.*, pp. 103–109.

¹⁴ See, generally, Peerenboom (2002a), and the cites therein. See also Peerenboom (2005).

¹⁵ Peerenboom (2007, pp. 39–43). Wealth is also highly correlated with social and economic rights ($r=0.92$), women's rights ($r=0.93$), good governance ($r=0.77$), control of corruption ($r=0.76$) and civil and political rights ($r=0.62$). China is projected to reach high-income status in the near future. This classification is based on the country's Gross National Income (GNI) per capita, which was around \$12,551 in 2021, nearing the World Bank's threshold for a high-income country in 2024 of \$13,846. By way of comparison, the U.S. GNI per capita in 2021 was \$70,900. World Bank Country and Lending Groups—World Bank Data Help Desk.

¹⁶ State Council (2008, 2011, 2012). See also the World Justice Project Rule of Law Index, discussed below.

Comprehensively Promoting Governing the Country According to Law (the “Decision”) highlighted shortcomings in the legislative process, where laws are undermined by departmental turf battles, lack feasibility and do not reflect the interests of the public; in the enforcement of laws, where laws and regulations are not implemented or are implemented unfairly or inconsistently; in the judiciary, where the lack of transparency and judicial corruption have eroded public trust and faith in the law; and in the legal consciousness of officials and citizens. In short, all of the institutions are in place, but they are not operating with the level of efficiency and fairness needed to meet social demands.¹⁷

Legal scholars, for their part, were also quick to point out many areas where further improvements were needed, including the development of new institutions and the reform or abolition of existing ones. Most notably, China lacked—and still lacks—a constitutional court (Peerenboom 2014b). Liberal scholars highlighted China’s poor performance in terms of civil and political rights and noted that China had signed but not ratified the International Covenant on Civil and Political Rights (“ICCPR”).¹⁸

On the theoretical front, the key issue in the debates over whether single-Party socialist authoritarianism is compatible with the rule of law has always been the leadership role of the Party and the relationship between the Party system and the state system. The formal relationship between the Party and state system was ambiguous. On the one hand, the 1982 Constitution seemed to subordinate the Party to the state. Article 5 stated: “All state organs and armed forces, all political parties and social organizations, and all enterprises and public institutions must abide by the Constitution and the law. ... No organization or individual shall have any privilege beyond the Constitution or the law.” On the other hand, the preamble to the Constitution also provided for the leadership of the Party.

There were several ways to deal with the issue. Defenders of the coherence of the concept of socialist rule of law generally took one of two approaches.¹⁹ The first was to claim that there could be no sustained conflict between the leadership role of the Party and state law and regulations. In any legal system, sovereign power is exercised by some entity (or entities). As the ruling party, the Party has the authority to ensure that its policy preferences are promulgated in state laws and regulations so conflicts between the will or dictates of the Party and state law should not arise, and if they arise, they can be addressed by the Party causing the laws and regulations to be amended as needed to express the policy preferences of the Party.

The second approach also claimed that there could be no sustained conflict between the leadership role of the Party and state law and regulations because the

¹⁷ The Decision was issued on October 23, 2014, at the 4th Plenum of the 18th Central Committee of the Chinese Communist Party.

¹⁸ Peerenboom (2007) summarizes empirical data that places China’s performance on a variety of human rights and good governance indicators in a comparative framework, and presenting a detailed analysis of the challenges for each category, including civil and political rights. On the whole, China outperforms relative to income level on most indicators of human rights and well-being with the exception of civil and political rights.

¹⁹ Peerenboom (2002a, b, p. 213) and the cites therein, contrasting views of early prominent legal theorists such Wang Jiafu and Liu Hainian with those of Li Buyun and Sun Xiaoxia.

Constitution formally required the Party to act in accordance with the Constitution. In the event of any conflicts between Party policies or actions and state laws and regulations, the latter prevailed.

A third perspective took a more wait-and-see approach, viewing the issue less as a theoretical or jurisprudential issue that could be resolved in advance and more as an empirical issue that would depend on what the leadership role of the Party amounted to and what the Party's role in daily governance actually was. In this view, the relationship between law and politics in general is a complicated topic in any legal system. Legal systems vary widely with respect to how sovereign power is exercised, and in the allocation of decision-making powers among the legislature, executive branch and judiciary, notwithstanding a general global trend toward juridification and the judicialization of disputes.²⁰ In some ways, the CCP could be analogized to the ruling party in a parliamentary-supreme system, where the ruling party is generally able to pass laws and regulations reflecting its policy goals, albeit in the CCP's case without the legitimacy that comes from having been elected and without the political or legal mechanisms to challenge it. While obviously this system would not be compatible with liberal democratic rule of law, it is theoretically compatible with socialist rule of law.

1.2 Socialist Rule of Law Under Attack

Over the ensuing two decades, the above approaches to reconcile the leadership role of the Party and rule of law and defend the coherence of the concept of socialist rule of law ran into a host of theoretical, legal and practical problems. First, the role of the CCP in daily governance was far more extensive and intrusive than in most political systems. Unlike in most systems, there has always been a parallel Party system at every level of government. To be sure, there was supposed to be a functional division between the Party and state systems, with the Party's leadership role in the political and ideological spheres restricted to determining the general direction and roadmap for China, developing the basic policy orientation and framework, and setting out guiding principles. The Party executed its leadership role and ensured adherence to its policies and guiding principles primarily through the nomenklatura system of appointments and through the establishment of Party groups within state institutions, social organizations and enterprises (Li 2015). However, in practice, Party organs and Party officials often exceeded these general guidelines, intervening in daily governance, influencing or determining the outcome in particular legal cases, and causing state actors to adopt their preferred interpretation of Party policies and implement state laws and regulations accordingly.

Second, and arguably more challenging in terms of rule of law theory than the mere existence of an extensive parallel Party system with a robust role for the Party, was that the parallel Party system and its actual role in governance were not reflected in the state Constitution or spelled out in state laws and regulations.

²⁰ Juridification refers to an expansion of legal discourse and modes of analysis into other spheres (e.g., economics, politics), whereas judicialization refers to an expanded role for the courts in deciding a wider range of social, political and economic issues. Chen (2009).

Third, and related, in practice, conflicts often did arise between Party policies and state laws and regulations. In general, politically non-threatening or non-sensitive cases have been handled by courts and state agencies in ways increasingly consistent with thin rule of law requirements. In contrast, the Party has determined, controlled or influenced the outcome through various direct and indirect methods in political cases that threaten the authority of the CCP and national security, as well in a wide range of politically sensitive cases.²¹ For instance, until recently corruption cases involving Party members and government officials were handled through an extra-legal Party process known as *shuanggui*.²² While the process was subject to Party rules, norms and practices, it did not provide those detained the protections afforded by the Criminal Procedure Law. After the Party investigation was completed, the case would often be turned over to the prosecutor for formal criminal charges. But the key determination of guilt would already have been settled in the Party process.

Similarly, during the Hu Jintao era, the Party responded to the rise in social-economic disputes with a more populist approach. Social-economic issues are difficult to deal with in middle-income countries because of the mismatch between rising citizen expectations and limited government resources. In response to the rise in mass labor disputes, government officials and judges, acting under the authority of the political-legal system's recently established social stability maintenance offices, met the protesters in the street in an effort to mediate a settlement, thus transforming the streets into a courtroom.²³ So-called "grand mediation," where judges in basic-level courts worked closely with higher-level courts, government agencies and Party organs, was another response to a wide range of socio-economic disputes that had the masses riled up and up in arms, figuratively, if not literally (Hand 2011).

Other inconsistencies included an extensive system of various types of administrative detention that lacked a constitutional basis and failed to provide those detained the protections afforded by the Criminal Procedure Law²⁴; the role of the Party in the nomination of judges; the role of political-legal committees in

²¹ Political cases include, for example, cases involving Falun Gong, attempts to establish an independent China Democracy Party, corruption among senior government officials, and national security cases involving terrorism, secession, endangering the state and state secrets. Politically-sensitive cases affect socio-political stability, economic growth, China's position in the world and international reputation or the broad public interest. They are political but less directly political than the type of case that challenges the authority of the ruling regime. Fu and Peerenboom (2009).

²² *Shuanggui*, a system in which the Criminal Procedure Law does not apply, is used for detaining and interrogating primarily party members who are suspected of corruption and other acts of malfeasance.

²³ This street as courtroom approach is a result of: (i) the weak capacity of the legal system, including a restrictive and cumbersome regulatory framework, that encourages mediation and requires arbitration before parties can access the court; (ii) the court's inability to provide an adequate remedy given limited resources; and (iii) a government-wide campaign to build a harmonious society based on sustainable and equitable development and social justice. It also reflected the populist turn of the judiciary under the former president of the Supreme People's Court, Wang Shengjun, who called for a more "democratic" judiciary which is responsive to citizen needs and promoted mediation and settlement of disputes as part of the effort to realise a harmonious society.

²⁴ Biddulph (2007), Biddulph et al. (2017) and Peerenboom (2004). Most forms of administrative detention were eliminated over time. However, the Criminal Law was amended to provide for various public order offenses, like starting fights and causing troubles, that effectively served the same purpose, but often resulted in even more severe punishments. Fu (2022).

influencing court decisions during periodic Strike Hard campaigns to deal with rising crime rates; and Party officials influencing the outcome in particular cases when sitting as members of the adjudicative committee within courts or in their capacity as members of the political-legal committee.

A fourth problem for socialist rule of law was that there was no clear institutional mechanism for resolving such conflicts. Political-legal committees in theory were designed to intermediate between the Party system and the state legal system. However, their role and authorities were unclear in theory, law and practice, and their powers ebbed and flowed over time. The conflicts were largely worked out by convention or on an ad hoc basis.

Fifth, and perhaps most importantly, in practice, Party policies often prevailed when there was a conflict, with state actors deferring to their Party counterparts,²⁵ despite efforts to push back from time to time or to avoid conflicts in the first place (He 2009).

Liberal critics, for their part, continued to reject the concept of socialist rule of law as theoretically incoherent and unworkable in practice. For some, the leadership role of the Party, whatever the formal relationship between the Party and the state and whatever form the leadership role took in practice, was simply incompatible with the fundamental principle of the supremacy of the law. Accordingly, they continued to label China as rule by law, a generic term applied to all authoritarian regimes (Ginsburg and Moustafa 2009). On this view, it did not matter that the Constitution required the Party to act in accordance with law. Nor was it necessary to conduct empirical studies to better understand the actual role of the Party in daily governance and the relationship between the Party and state systems. For others, however, the issue was not so much a jurisprudential issue as an empirical one: there were just too many instances in practice where the Party seemed to be acting without legal authority.

In addition, many liberal critics objected to and rejected socialist rule of law on normative grounds, adamantly resisting any attempt to grant legitimacy by providing the halo effect attached to “The Rule of Law” to what they saw as a despotic authoritarian regime that restricts human rights, imprisons dissidents, and engages in genocide.

Many liberal criticisms reflect the fundamental differences in conceptions between liberal democratic and socialist rule of law. The differences between the two are readily apparent in terms of conceptions and interpretations of human rights, the nature and role of civil society, and the very purpose of rule of law, with liberal democrats taking the primary purpose of rule of law to be to limit the state and defenders of socialist rule of law seeing rule of law as a means to strengthen the state—or to “rejuvenate the nation” in Xi’s preferred locution (see “Appendix”).

²⁵ For why this would be the case, see Li (2023). Xi portrays the problem less as a structural one resulting from the leadership role of the Party and more as a failure of individual Party leaders and government officials who lack rule of law consciousness, who continue to believe they are above the law and just want to get things done, or who abuse their power for personal gain. See, e.g., *The Law-Based Governance of China*, pp. 87–88, 134–135, 142–143.

To a considerable extent, different outcomes could be attributed to these substantive and normative differences in thick conceptions. Nevertheless, even supporters of socialist rule of law often had to admit that the way in which many cases involving alleged threats to the state or social stability were handled was not consistent with state laws and thus at odds with basic thin rule of law requirements.²⁶

1.3 The Empire Strikes Back: Attempts to Defend Socialist Rule of Law with Chinese Characteristics

Official attempts to defend against the attacks by critics came initially in the form of a series of white papers on rule of law. For the most part, the reports consisted of a laundry list of technical legal reforms that showed progress in building the necessary state capacity to meet thin rule of law requirements, in improving the legislative framework, and in increasing the level of professionalism of state legal actors. Such progress was reflected in the World Bank's rule of law index and other such indices that attempted to operationalize and measure "the rule of law" in a way that allowed for large N cross-country comparisons.²⁷ But improvement on rule of law indices that largely track thin rule of law criteria compatible with different thick conceptions of rule of law did nothing to resolve the normative debates between those who championed the rival competing thick conceptions of liberal democratic rule of law versus socialist rule of law. Moreover, since the technical legal reforms were to the state legal system, they made the state legal system more compliant with thin rule of law requirements, but they did not change the way the Party system operated or the fundamental nature of Party-state relations. Party-state relations continued to be determined by the Party in its leadership role and were left largely uncoded and handled by convention according to the perceived needs of the time. Not surprisingly, liberal critics continued to protest that the leadership role of the Party was inconsistent with "The Rule of Law"—or "genuine rule of law"—both in theory and practice.

Official Party discourse struggled to articulate a coherent theoretical response to the critics. In the first decade of reforms, there was an attempt to clarify the roles of the Party and state and to separate the two systems. This effort, associated with Zhao Ziyang, came to a screeching halt after 1989 and the Tiananmen demonstrations (Chen 2106; Zhang 2021a, b). Liberal critics and many legal professionals continued to hold out hope that the stillborn efforts to separate the Party and state would be resumed once the dust settled after Tiananmen, and the Party would gradually wither away. But they have been continually disappointed. Although there was no significant expansion of the Party into the political, economic, social and legal spheres during the Jiang and Hu years, there was no significant retreat either. An uneasy stasis prevailed. The tension between the visions of those who hoped for

²⁶ Fu (2022), provides a summary of the many persistent problems in criminal justice notwithstanding significant reforms over the years, including the legalization of repressive measures such as residential surveillance at a designated place. See also Guo (2019).

²⁷ On the methodological difficulties of operationalizing "rule of law" in a way that allows for comparative empirical studies, see Ginsburg (2011).

a retreat of the Party and those who favored a more active and robust role for the Party in its leadership capacity was reflected in the jurisprudentially incoherent and much-maligned slogan during the Hu era of the Three Supremes: the supremacy of the Party, the supremacy of the interests of the people, and the supremacy of the constitution and laws.

In the absence of a coherent theoretical response to critics, defenders of socialist rule of law were often reduced to putting out fires, responding in a piecemeal and ad hoc manner to particular criticisms. To give just a few examples, analogies were drawn between the Strike Hard campaigns and the “war on crime” in other countries; the extralegal *shuanggui* detention was deemed justifiable because it only applied to Party members who were said to have implicitly consented to Party discipline measures by joining the Party; adjudicative committees consisting of senior judges to review important cases were considered a necessary practice to make the most of limited judicial resources when China was still struggling to educate and train judges and rebuild the judicial corps decimated during the Cultural Revolution; grand mediation was an example of a larger global pattern of novel institutional developments in middle-income countries to handle cases that ultimately came down to how to allocate scarce resources. When all else failed, defenders of the theoretical coherence of socialist rule of law could always fall back on the truism that rule of law is an ideal imperfectly realized in any legal system, and the comforting claim that establishing rule of law is a long-term endeavor, with many twists and turns along the way.

While not without merit, these attempts to explain, rationalize, and justify particular practices had a decidedly defensive air about them. As such, they were increasingly at odds with a rapidly developing and more self-confident China. As China’s economic power grew, defenders of China’s development path became more aggressive in responding to critics. There was a notable shift in attitude after the Global Financial Crisis, which China powered through while maintaining high growth rates and which many saw as further evidence of the historical trend of the inevitable decline of the West.²⁸ Official discourse and Party-aligned academics became more assertive in critiquing the performance of Western countries and the dominant conception of liberal democratic rule of law, and much more vocal in promoting China’s own development path and political system.

Drawing on the works of Carl Schmitt, a number of legal scholars took aim at the notion of liberal legality that lie at the core of liberal democratic rule of law (Marchal 2017; Seppänen 2019). Liberal legality at least in theory or conceptually sees politics and political power as completely subject and subordinate to state law and legal procedures. This restraint on state actors and political powers is indeed often taken to be the essential or defining feature of rule of law.

According to the illiberal critique, this view of liberal legality and rule of law is simplistic, misleading, and inaccurate. The liberal understanding or image of rule

²⁸ Others however have portrayed the large fiscal stimulus and heavy reliance on local governance finance vehicles to fund real estate and infrastructure projects as a ticking time bomb that Beijing has been unable to defuse and continues to threaten economic growth and stability. Spine (2024) observes that Beijing’s response to the Global Financial Crisis “sent LGFV growth into steroidal overdrive”.

of law is that sovereign political power is ultimately grounded in laws and regulations, which can be traced back to a *grundnorm* (Kelsen 1934) or a rule of recognition (Hart 1961),²⁹ or some initial legal act such as the ratification of the constitution, from and upon which other organic laws and subsequent rules and regulations are then developed. Put in terms of Venn diagrams, the political sphere (sovereign power) would be completely consumed within the larger legal sphere.

Critics, not just illiberal ones, have pointed out that there is an initial problem of how the *grundnorm* or rule of recognition is established—it can't itself rest on a pre-existing legal rule—it can't be turtles all the way down.³⁰ Similarly, the initial act of constitution-making is a political act, as well as a social, legal, normative and oftentimes revolutionary act.

Moreover, in all systems, the political spheres and legal spheres have some degree of separation. They overlap, so the political sphere overlaps with the legal sphere in a Venn diagram, but the political sphere is not completely contained within the legal sphere.³¹ Political parties, for example, have their own intra-party rules, conventions and norms.

Indeed, another problem for the simplistic civics textbook view of rule of law is that not all forms or spheres of life (legal, political, social, personal, sexual, religious, etc.) are fully legalized or juridified in the sense of being subject to exhaustive rules and regulations. Many areas exist largely outside the juridified sphere of codified laws and regulations. And even in the legal sphere, as in the political sphere, norms and conventions and institutional practices play a significant role in how they operate.

Finally, critics pointed out that there are many ways in which political power (sovereign power) is exercised even in systems of liberal legality and liberal democratic

²⁹ In all systems, the entities with power to make or change laws are in some sense beyond the law. However, there may still be laws that limit their authority to make or change laws. The view that the sovereign is above the law and determines the law was modified slightly but significantly by positivists such as H.L.A. Hart for whom the touchstone for what constitutes a valid law is whether the rule was promulgated in accordance with proper procedures. Such procedures, and thus the authority for law, can be traced back to a basic legal norm or a "rule of recognition." A dictatorial regime therefore could exercise legal authority and make law, as long as it complied with the procedural requirements for making law. Moreover, the rulers could be required to follow laws once made. Such a system is compatible with rule of law. On the other hand, a system in which the ruling regime's pronouncements simply have the force of law and the regime is not itself bound by such laws is better characterized as a rule by law or *rechtsstaat*.

³⁰ Hart argued that Kelsen's *grundnorm* was unnecessary and mystifying. For Hart, the rule of recognition was a meta-rule based on a convention among officials accepting as a social practice the criteria that determine a law's validity. Others have found Hart's rule of recognition equally mystifying. For a critique, see Dworkin (1967), Shapiro (2007) and Shapiro (2009), noting that Hart's rule of recognition has been criticized by both legal positivists and natural law proponents. But see Leiter (2020), critiquing Shapiro's views. These are deep and murky jurisprudential waters that go to the very core of what is (the nature of) law, the relationship between law and morality, and whether conceptual or general jurisprudence is even possible. The debates are highly technical, insular, and self-referential, and not for the faint-hearted novice swimmer who would do well to heed the warning signs: Danger! Strong Riptides—Enter at Your Own Peril.

³¹ For a sampling of issues that complicate the relationship between the political and legal spheres, see generally, the four-volume series, *Law and Politics: Critical Concepts in Political Science* (princeton.edu).

rule of law that cannot be traced back directly to a legal basis, or for which the legal basis is one that provides discretion to the decision-maker to make a decision at the time in a way that fails to impose meaningful restraints on the exercise of sovereign power, and is therefore in a sense dictatorial. Schmitt focused on times of exception or emergency. For instance, the New York University Brennan Center for Justice has identified 136 statutory powers available to the United States president upon declaration of a national emergency (Seppänen 2019). Others have focused on constitutional crises or revolutionary moments when the fundamental rules of the game—the rules that constitute the constitutional order—are up for grabs and replaced through a process that is not itself governed by law and the constitutional amendment procedures.³²

For Schmitt, liberal democracies fool citizens into believing that political power is constrained by the rule of law and legal norms. Schmitt acknowledges that this is generally true during normal times. But during times of emergency or crisis, rule of law and legal norms give way to a sovereign exercise of dictatorial power. The state may confront external existential threats such as terrorist attacks, wars or pandemics, or internal existential threats such as civil wars, coups, the refusal to abide by the principle of the peaceful transfer of power or financial crises.³³ The threats will often be unprecedented, unforeseen, or at least arise suddenly. In such cases, even well-established liberal democracies react by declaring a state of emergency, suspending the rule of law and derogating or restricting fundamental rights. In the U.S., for example, Lincoln suspended habeas corpus and seized the property of southern rebels during the Civil War; Roosevelt signed an executive order to round up and relocate to detention camps over 100,000 U.S. citizens of Japanese ancestry during WWII, a decision subsequently sanctioned as constitutional by the Supreme Court in *Korematsu v. The United States*; and the Bush administration responded to the 9–11 terrorist attacks with waterboarding, rendition and the Patriot Act that authorized detention without trial of immigrants, permitted property searches without a warrant, and expanded surveillance to include the tapping of domestic and international phone calls. Upon taking office in 2020, Trump declared a state of national emergency to support his campaign pledge to crack down on illegal immigration. As a result, he authorized the use of military force and personnel to police the border and provide detention space and logistics as needed, issued an order to pay for and build a wall along the southern border, and sent both criminal and non-criminal immigrants to Guantanamo Bay to await deportation while threatening other countries with crippling tariffs if they did not accept immigrants deported by the U.S. He also invoked the Alien Enemies Act to support mass deportations and arrest immigrants

³² Ackerman (2018) discusses the difficulty of upholding the rule of law during “constitutional moments,” pivotal periods where the political landscape undergoes transformative change. During these periods, the traditional legal framework often becomes inadequate in addressing the demands and aspirations of the populace. In response, charismatic leaders emerge to provide vision, direction, and legitimacy to revolutionary movements. Ackerman stresses the importance of upholding the rule of law even in such moments, calling for heightened scrutiny and deliberation of constitutional innovations at such crucial junctures.

³³ For the unprecedented and extraordinary actions taken by the U.S. Federal Reserve and other central banks and governments during the Global Financial Crisis in 2007–2008, see Tooze (2018).

lawfully in the U.S and carried out deportations despite court orders explicitly prohibiting the administration from doing so.

None of this would surprise Schmitt. For Schmitt, the sovereign is whoever has the power to declare a state of emergency or exception. In a state of emergency, the normal legislative, executive and judicial procedures are too slow, plunging the state into chaos. Ex ante rules that authorize the executive or some other body to make decisions in times of crisis cannot possibly anticipate every scenario that might arise. To be effective and save the state, the exercise of sovereign power may need to exceed legal norms and proceed without legislative or judicial approval, and in that sense the exercise of power will be dictatorial.³⁴ In certain circumstances, the sovereign dictator may even need to set aside the constitution to create a new constitution and constitutional order that better reflects “the will of the people,” uniting the people by rallying them around the friend-enemy distinction.

Attacking liberal legality may have taken some of the wind out of the sails of the more theoretically inclined defenders of liberal democratic rule of law. But most people are not legal theorists, and liberal democratic rule of law remains the globally dominant conception of rule of law. A different strategy was needed to defend socialist rule of law against its critics. Enter Lary Catá Backer and Jiang Shigong. Writing independently and then in dialogue in the journal *Modern China*, they attempted to reconcile the conflict between the leadership role of the Party and its actual role in China’s political order by advancing the more realistic and holistic notion of a “living constitution” that includes both the Party system and the state system (Backer 2009; Jiang 2010; Backer 2010). Moreover, the living constitution was not reducible to the formal state constitution and its laws and regulations, nor to the Party constitution and its written rules. Rather, it included unwritten norms, conventions and practices that operated in, constituted, and intermediated between the Party and state constitutional systems.

Invocation of a living constitutional order advanced the ball in terms of presenting a more accurate portrayal of governance in China. But it did little to assuage liberal critics who continued to hammer China for falling short of liberal democratic rule of law standards. Such was the state of affairs when in 2014 Xi Jinping and the CCP announced, much to the surprise of many, that a central committee plenary session would address the topic of rule of law for the first time.

1.4 The Fourth Plenum on Rule of Law

The fourth plenum sought to accomplish three main tasks. First, to reconfirm for domestic and international audiences that China is pursuing its own development path aimed at establishing socialist rule of law with Chinese characteristics; second, to provide a central-level comprehensive plan for legal reforms that cuts across jurisdictions and rises above departmental interests; and third, to move beyond the

³⁴ Trump has justified his executive orders, many of which have been challenged in court and appear—or have been found by lower courts—to be illegal, by quoting Napoleon: “He who saves his Country does not violate any Law”.

hardware of legal reforms to the software by promoting the norms and practices of a rule of law culture for officials and citizens alike (Peerenboom 2014c).

The plenum Decision reconfirmed unequivocally that China is pursuing its own development path aimed at socialist rule of law with Chinese characteristics, the cornerstone of which is the leadership role of the Party. In Xi's own words:

This is a clear declaration at home and abroad that we will unflinchingly march the path of socialist rule of law with Chinese characteristics. The path of socialist rule of law with Chinese characteristics is the concentrated embodiment of the achievements and experiences of socialist rule of law construction, and the only correct path to construct a socialist rule of law country. On the question of which rule of law path to march, we must set a clear and correct signal to the entire society...

Normatively, this is an emphatic rejection of the globally dominant liberal democratic conception of rule of law. Adopting the strategy that the best defense is a good offense, the Decision invoked the leadership of the Party fourteen times, while singing the praises of socialist rule of law. The first issue addressed in Xi's Explanation is the relationship between the leadership of the Party and governing according to law, which Xi described as the core issue in the establishment of rule of law. Xi in essence argued that the China's progress to date has been under the leadership of the Party, and that at this critical juncture in the development process, Party leadership is essential to ensure the transition from middle-income status to high-income status, to maintain social and political stability, and to ensure a more fair and just society governed according to law. As he says, on this, "we must speak with justice on our side, and with flying banners and beating drums."

Methodologically, the Decision rejected the rule of law promotion industry's one-size-fits-all approach of transplanting or seeking convergence with "international best practices." China would continue to adopt and adapt international best practices to fit its own development needs and conditions. This applies not just to broad theoretical notions such as the rule of law, but to more specific issues such as the role of the judiciary and the proper interpretation of human rights, including civil and political rights.

Institutionally, the Decision offered the most explicit statement to date of the dual nature of the Party-state constitutional order. The Party and state systems are separate—each has its own constitution, institutions, rules and practices—but they are complementary. The Decision promised a more rules-based order for both the Party and the state. Party rules were to be strengthened; and Party institutions such as political-legal committees and Party groups in the courts would continue to operate, although their roles, authority and duties would be clarified.

While proudly waving the banner of socialist rule of law with Chinese characteristics, the Decision stopped short of resolving the tension that lies at the heart of socialist rule of law between the leadership of the Party and rule of law by expressly incorporating the role of the Party and Party organs into the constitution, as some feared and others hoped might happen. Rather, the living constitutional order would include both systems, and the relationship between them would continue to be governed mainly by convention. There would be no constitutional court to resolve

conflicts between the two systems, with the Party apparently deciding how any such conflicts would be resolved as part of its leadership role.

As a result, there would continue to be both theoretical and practical tensions between the two systems, and questions about whether such a system is compatible with rule of law.

Given the difficulties squaring the leadership role of the Party with rule of law principles, some legal scholars searched for better frameworks than rule of law for describing the PRC legal system. Ling Li (2015), writing in the wake of the fourth plenum, proposed a dual normative framework consisting of a Party normative system that regulates the Party-state sphere and a state normative system that regulates the state-society sphere. The relationship between the two normative orders is hierarchical rather than equal:

The superiority of the Party normative system is manifested and realized by the Party's preservation of exclusive decision-making power in marked key areas and issues.... When the Party exercises this exclusive decision-making power, either in policy or day-to-day governance "state matters", its activities are not bound by the state laws. Instead, the Party's superior rank, as defined in the nomenklatura, allows its authority to override the authority of state institutions.

In a similar vein, Fu Hualing (2019, 2022) has sought to describe the Chinese legal system in terms of the "dual state theory" developed by Ernst Fraenkel in the context of Hitler's declaration of a state of emergency during the National Socialist period. For Fraenkel, the dual state consists of the prerogative state, "the governmental system which exercises unlimited arbitrariness and violence unchecked by any legal guarantees," and the normative state, "an administrative body endowed with elaborate powers for safeguarding the legal order as expressed in statutes, decisions of the courts, and activities of the administrative agencies" (Fraenkel 2017). In Fu's view (2022), "[t]he Party has been able to build a relatively self-defined and self-referencing legal system to provide the certainty and order that the Chinese political economy demands while maintaining a zone of exception, expansive and continuing to evolve, for the prerogative state to safeguard authoritarian rule."

2 Post 4th Plenum Developments: Xi's Comprehensive Rules-Based Governance and Party-State Socialist Rule of Law

Following the fourth plenum, the contours of Xi Jinping Thought on Rule of Law and the legal system began to come into focus. Essentially, he laid out a three-part agenda, the first part consisting of efforts to make the Party system more rules based; the second part to develop the rules, institutions, and practices for intermediating between the Party and state systems; and the third part to continue ongoing efforts to strengthen the state legal system.

2.1 Governing the Party According to Rules

According to Zhang Wenxian (2021), a legal scholar tasked with taking Xi's speeches on the legal system and rule of law and organizing them into a coherent framework, "Xi Jinping Thought on the Rule of Law is the crystallization of the spirit of socialist rule of law in the new era, and has made a series of original and landmark contributions, among which the concept of 'governing the Party according to rules' and 'adhering to the organic unity of governing the country according to law and governing the Party according to rules' are the key points."

In October 2017, the Party constitution was amended to incorporate "governing the Party according to rules." Why was this necessary? In Xi's view, he had inherited a large, sprawling, complex system that had become increasingly chaotic and dysfunctional. Party members lacked discipline. Corruption was rampant, threatening regime survival. A sizable percentage of the 90 million Party members had lost faith in socialism, with many only joining the Party to advance their careers and for personal benefit. Party organizations, including 4.6 million grassroots Party organizations and over 3000 local Party committees, were not fulfilling their mission. The system of intra-Party rules was in disarray, with overlapping and inconsistent rules and many regulations that were obsolete and no longer consistent with Xi Thought on Socialism with Chinese Characteristics for a New Era. Major reforms to the Party system would need to be made if the Party was going to achieve Xi's China Dream and lead China to the promised land, first achieving a moderately well-off society by 2020, then the basic realization of socialist modernization by 2035, before ultimately becoming a modern socialist country that "leads the world in comprehensive national strength and international influence" by the Party centennial in 2049.³⁵ Who would oversee and guide this process? Xi, of course—who was not only just the man to do it, he was the *only* man to do it.

With his goal of national rejuvenation firmly in mind, Xi set out to overhaul the system of intra-Party rules; to crack down on corruption through a persistent and widespread anti-corruption campaign that not only swatted flies but put down tigers³⁶; to enforce Party discipline strictly and comprehensively through a centralized disciplinary regime; and to strengthen ideological indoctrination to ensure that all members from top to bottom are loyal to Xi as the core leader of the Party and that they faithfully adhere to Xi Thought.

Governing the Party according to rules was celebrated as a theoretical breakthrough that achieved a historic change from the traditional "rule by man" and the "control model" to a modern system of good governance. But to govern the Party comprehensively and strictly according to rules required that the system of intra-Party rules be overhauled and put in order. How was this to be realized? Essentially,

³⁵ Full text of the report to the 20th National Congress of the Communist Party of China (china-embassy.gov.cn).

³⁶ Guo (2020), noting that between 2014 to 2017, over 145,000 party leaders and party members were subject to Party discipline and more than 150 senior officials and 250,000 rank-and-file Party members were subject to criminal prosecution.

by following the model for reforming the legislative system to make it more thin rule of law compliant.

When the Party first announced the goal of governance in accordance with law and the establishment of a socialist rule of law state in the late 1990s, one of the main challenges was a chaotic legislative system. Rule of law requires a way of verifying whether laws are valid and legally binding, i.e. they are made by an entity with authority to make laws; the entity was acting within its scope of authority; and the entity followed proper procedures. The resulting laws and regulations must be reasonably clear, stable, and consistent internally and with other legislation. Yet legislative authority in China was widely dispersed. The lawmaking and rulemaking processes lacked transparency; opportunities for public participation were limited. The quality of much legislation was low, in part due to the lack of practical experience and competence of drafters. Many laws were vague or poorly drafted, ill-advised or unworkable in practice. Laws and regulations were subject to frequent change. Even more worrisome, there was a shockingly high incidence of inconsistency between lower and superior legislation, and no practical way to resolve the many inconsistencies (Peerenboom 2002a, Chap. 6).

Over time, these issues were addressed, and the legislative and administrative rule-making systems were improved. The Law on Legislation clarified the authority of various entities to issue legislation, standardized terms for the different types of legislation, and created a clear hierarchy of laws, regulations, rules and normative documents. It also limited delegation and established a mechanism for reviewing lower-level legislation for consistency with higher level legislation. The Law on Legislation and other regulations set out procedural requirements for passing laws and regulations, increased public participation and transparency, and required laws and regulations be made public and more accessible.

Reform of the Party rules-based system has followed this general blueprint. Although the process has not been without its challenges, there has been considerable progress in developing an intra-Party regulatory system that is more compliant with thin rule of law requirements, a trend that will presumably continue as the system is further developed (Snape 2019; Horsley 2019).³⁷

³⁷ See, e.g., Plan on Building the Rule of Law in China (2020–2025) (chinalawtranslate.com): “(21) Complete the system of intra-Party regulations. Persist in and strengthen the overall leadership of the Party, insist that the Party must manage the Party, govern the Party strictly, take the Party constitution as the foundation, take democratic centralism as the core, constantly improving the Party’s organization regulations, the Party’s leadership regulations, the Party’s self-building regulations, the Party’s supervision and guarantee regulations, building an inner-Party legal system with scientific content, strict procedures, complete supporting facilities, and effective operation. Persist in the simultaneous implementation of legislation, reform, abolition, and interpretation, advance with the times, do a good job in formulating and revising internal Party laws and regulations, improve the clean-up work mechanism, increase interpretation efforts, and improve the quality of Party laws and regulations. Improve the filing and review system of the Party’s laws and regulations, insist that all documents are necessary, all preparations must be reviewed, and errors must be corrected, so as to maintain the unity and authority of the Party’s legal system. Pay attention to the convergence and coordination of internal Party regulations and national laws, and strive to form a structure in which national laws and internal Party regulations are complementary, mutually reinforcing, and mutually guaranteed”.

Surveying the situation from a broader political perspective, Minxin Pei (2019) concludes: “Xi Jinping has made significant progress in implementing a systematic program to rewrite the rules of the Chinese Communist Party. These changes are designed to augment Xi’s personal authority, centralize decision-making power, tighten the Party’s organizational discipline and procedures, extend CCP control over state and society, and intensify ideological indoctrination.”

2.2 The Intermediation of the Party and State Systems

The second aspect of Xi’s socialist rule of law with Chinese characteristics involves the relationship between the Party system and the state system. Formally, the relationship remains largely the same but in practice there have been many developments that have altered the Party-state relationship, some of which raise novel issues from a rule of law perspective and which, when taken collectively, reflect a new conception of socialist rule of law.

In 2017, Xi proclaimed in a report to the 19th Party Congress that “the Party leads everything,” which was then duly incorporated into the Party constitution in 2018. In one sense, this was nothing new. The preamble to the 1982 Constitution attributed China’s past, present and future success to the leadership of the Party. Nevertheless, Xi’s proclamation appeared to signal a more robust leadership role for the Party over the political, legal, economic and social spheres. This seemed all the more likely when Article 1 of the state Constitution was amended to provide that socialism is the fundamental system of the PRC, with Party leadership as the defining feature of socialism with Chinese characteristics. With the incorporation at the same time of “Xi Jinping Thought on Socialism with Chinese Characteristics for a New Era” in the preamble to the Constitution, understanding the theoretical and practical implications of Xi Thought on Rule of Law became even more important.³⁸ What would the leadership role of the Party consist of for Xi? Would he fundamentally alter the nature of the relationship between the Party system and the state legal system? Does Xi Thought signal a fundamentally different conception of socialist rule of law?

At a formal level, there has been no or little substantive change. Article 5 of the Constitution still calls for government in accordance with law and the establishment of a socialist rule of law state. It still provides that the Party, the military, state organs and social groups must all comply with the Constitution and laws. No person or entity is privileged or above the law. The Party constitution, amended in 2017, stipulates in the preamble that the Party must act within the framework of the state Constitution and laws, maintain law-based governance, and build a socialist rule of law country. Other articles in the Party constitution reconfirm that Party members and Party organizations must abide by the law and handle matters in accordance with the law.

³⁸ Thus, Xi and his thought joined the hallowed ranks of Marxism-Leninism, Mao Zedong Thought, Deng Xiaoping Theory, the Theory of Three Represents associated with Jiang Zemin and the Scientific Outlook on Development of Hu Jintao.

Xi, for his part, highlighted in a speech at the 19th Party Congress that China had made progress in developing socialist rule of law, and that efforts would continue to further strengthen the rule of law. After announcing that a central leading group for comprehensive law-based governance would be set up to exercise unified leadership over the initiative to promote the rule of law in China, he vowed:

We will redouble efforts to raise public awareness of the law, develop a socialistic culture of rule of law, and increase public awareness of the principle underlying rule of law that the Constitution and the law are above everything else and that everyone is equal before the law. Every Party organization and every Party member must take the lead in respecting, learning about, observing, and applying the law. No organization or individual has the power to overstep the Constitution or the law; and no one is allowed in any way to override the law with his or her own orders, place his or her authority above the law, violate the law for personal gain, or abuse the law.³⁹

However, looking beyond the formal level and the rhetorical recitation of these abstract general principles, there have been significant changes in the relationship between the Party and state in practice.⁴⁰

First, there has unquestionably been a centralization of power, with greater power increasingly concentrated in Xi's hands. This is clearly reflected in Xi's elevation to the "core" of the Party and in the elimination of term limits that will allow him to rule over both the Party and the state indefinitely. Institutionally, the centralization and concentration of power has been achieved largely through the formation of leading small groups and commissions, many of them headed by Xi, that set the agenda for both the Party and state systems.⁴¹

Second, there has been a much greater focus on ideology with a heavy emphasis on studying and faithfully adhering to Xi Thought, including within the Party, the state sector and the social sphere.⁴² Within the legal sector, there are mandatory

³⁹ Full text of Xi Jinping's report at 19th CPC National Congress—China—Chinadaily.com.cn. Such statements from Xi are not unusual. In 2014, in celebration of the NPC's officially delegated Constitution Day on December 4, Xi stated "the Constitution is our country's fundamental law. Governing the country according to law means, most importantly, governing it according to the Constitution; wielding political power by law means, most importantly, wielding it according to the Constitution" (Xi 2014).

⁴⁰ This list is not meant to be exhaustive but to highlight some of the major changes that are substantively important from a broader political and governance perspective and, at least potentially, significant or of theoretical interest from a rule of law perspective. Another area that is undergoing transformation and clearly relevant is "constitutional enforcement," which includes a wide range of functions and activities for the National People's Congress Standing Committee including personnel and organizational changes, oversight, and constitutional review and interpretation. See *Dissecting the Chinese Legislature's First Annual Report on Constitutional Enforcement* (npcobserver.com).

⁴¹ See Guo (2020), noting the creation of Comprehensively Deepening Reform Leading Small Group, the National Security Commission, Central Committee for Comprehensive Law-based Governance, a Central Cyberspace Affairs Commission, a Central Financial and Economic Committee, and a Central Foreign Affairs Work Committee.

⁴² Plan on Building the Rule of Law in China (2020–2025) (chinalawtranslate.com), (27). "Thoroughly study, publicize, and implement Xi Jinping Thought on Rule of Law. Xi Jinping's thought of rule of law is the fundamental guide for compliance and action in comprehensively governing the country according

study sessions on Xi Thought on Rule of Law; law school textbooks have been revised and reorganized to highlight Xi's ideas on law and governance; and the national bar exam now includes questions on his views. Within society more broadly, school curricula have been unified and placed under strict controls, with a prominent place assigned to Xi Thought, including his thoughts on rule of law, which is interwoven into subjects throughout the curriculum.⁴³

Third, there have been significant adjustments in the functions carried out by Party and state organs. In some cases, Party functions have been transferred to state organs and given a legal basis, in what some commentators have referred to as a turn toward legalization.⁴⁴ The most notable example is the National Supervision Commission, an anti-corruption agency with broad powers that provided a legal basis for Xi's anti-corruption campaign, and whose jurisdiction includes not just Party members but all state officials. But in most cases, state functions were shifted to Party organs.⁴⁵ This realignment of functions was achieved largely through a comprehensive restructuring that merged Party and state bodies with overlapping functions into

Footnote 42 (Continued)

to law. It is necessary to strengthen deployment arrangements, continue to promote the broad masses of cadres and the masses to thoroughly study and implement Xi Jinping Thought on Rule of Law, deeply understand the Marxist standpoints and methods contained therein, fully and accurately grasp the spiritual essence, rich connotation and core essentials, and enhance the consciousness and determination of study and implementation. The theoretical study center group of Party committees (Party groups) at all levels should focus on Xi Jinping Thought on Rule of Law, and Party schools (administrative schools) and cadre colleges should offer key courses. All regions and departments should organize Party members and cadres to conduct systematic study and training. The rule of law work department should carry out training and rotation training on all fronts. It is necessary to integrate Xi Jinping Thought on Rule of Law into school education and include it into the teaching system of the theory of rule of law in colleges and universities, and do a good job of entering teaching materials, entering the classroom, and entering the mind. We must carry out in-depth research and publicity to expand the breadth and depth of learning and publicity, and use new media and new technologies to strengthen online presentations”.

⁴³ Tsang and Cheung (2023): “Xi Jinping’s goal for promoting ‘patriotism’—in reality, party-centric nationalism—is to forge a single united people out of China’s diverse population of 1.4 billion. He is effectively seeking to resurrect Chairman Mao’s failed project to create ‘new socialist people,’ which ended in mass disillusionment with socialism.” Of all of Xi’s outsized ambitions, the efforts to unify thought in accordance with Xi Thought and create “one people” out of China’s diverse, differentially situated and increasingly pluralistic population is almost certainly the most quixotic, and the most likely to encounter resistance, generate opposition and undermine the generally positive attitudes most people have had for the Party’s role in improving life to date, particularly given the intrusive and coercive way he has gone about it. On the Confucian roots of the importance of unity of thought in governance, see Peerenboom (1998).

⁴⁴ Zhang and Ginsburg (2019): “The CCP under Xi Jinping has indeed centralized power and control to an almost unprecedented extent, but it has done this in a highly legalistic way, empowering courts against other state and Party entities, insisting on legal professionalism, and bringing political powers that were formerly the exclusive possession of the Party under legal authorization and regulation”.

⁴⁵ Horsley (2019): “Regulation of film, news media, and publications was given solely to the Party Central Propaganda Department, while managing overseas Chinese, as well as religious and ethnic affairs, moved directly under the Party’s United Front Work Department... The Legislative Affairs Office, formerly charged with drafting laws and national regulations, was removed from the State Council, and its functions dispersed and merged with the Ministry of Justice, which also now houses the Party’s Central Law-based Governance Commission office, directed by the head of the Party’s Central Political and Legal Affairs Commission. The National Academy of Governance, which trains government officials, moved into the Central Party School, which trains Party cadres”.

a single body or combined them through a “one door, two nameplates” approach.⁴⁶ The Central Disciplinary Commission, for example, whose jurisdiction is limited to Party members, now shares an office building with the National Supervision Commission and more importantly the two organizations jointly share administrative responsibilities and jurisdiction over all officials. Similarly, with respect to the nomenklatura system, the State Civil Servants Bureau was absorbed into the CCP Organization Department, which “now has sole authority over the appointment, transfer, assessment, reward, punishment, training, and welfare of state officials, regardless of seniority or party membership.”⁴⁷

Fourth, there has been a significant increase in the number and scope of documents issued jointly by Party and state organs. Jointly issued documents are not new. But the number was greatly reduced over the years as part of the ongoing effort to bring order to the state legislative and rule-making processes. The Law on Legislation, most notably, did not provide for jointly issued Party and state documents in the normative hierarchy of legislation. Moreover, jointly issued regulations in the past focused primarily on managing Party members who were also state officials, a common occurrence since most senior government posts also require one to be a Party member.⁴⁸ The scope of joint Party-state documents has been broadened in recent years to include, *inter alia*, law-based government, statistical fraud, environmental protection and cyberspace (Horsley 2019).

Fifth, dispute resolution mechanisms have been adjusted, including a swing back toward the courts and away from mediation to some extent. Under Xi, more disputes have been channeled to the courts by adjusting jurisdiction rules to broaden the scope of cases to be heard by courts and clarifying the grounds for accepting cases that made it more difficult for courts to refuse cases that were either difficult to resolve from a legal perspective or would have put them into conflict with other state actors. The result has been an explosion in the number of cases, with civil and commercial cases more than tripling since 2014 to nearly 20 million a year.⁴⁹ Nevertheless, there is and will continue to be experimentation with different dispute resolution mechanisms, including the promotion of non-litigation mechanisms, to better meet the rising expectations of citizens.⁵⁰

⁴⁶ Guowu Yuan Jigou Gaige Fangan [Plan to Restructure the State Council], March 17, 2018, http://www.gov.cn/guowuyuan/2018-03/17/content_5275116.htm.

⁴⁷ Tsang and Cheung (2023) point out however the CCP Organization Department operates in the name of the now defunct State Civil Servants Bureau in external communications.

⁴⁸ Horsley (2019) points out 80% of civil servants and 95% of senior officials are Party members.

⁴⁹ Zhang and Ginsburg (2019). Finder and Zhu (2024) note that court cases have increased by an average annual rate of 13% since 2013.

⁵⁰ See the “Overall Goals,” SPC Opinions on Deepening Reform—Fifth Five-Year Program. See also, Plan on Building the Rule of Law in China (2020–2025) (chinalawtranslate.com), art. 13: (“Actively guide the people to defend their rights in accordance with the law and resolve conflicts and disputes, and adhere to and develop the ‘fengqiao’ experience in the new era. Give full play to the role of people’s mediation as the first line of defense, improving working systems of people’s mediation, administrative mediation, and judicial mediation. Fully carry out lawyer mediation work. Improve the comprehensive mechanism of multiple prevention, mediation and resolution of social conflicts and disputes such as mediation, letters and visits, arbitration, administrative adjudication, administrative reconsideration,

Sixth, there has been a continuation of the efforts to strengthen the judiciary through increased training and professionalism, albeit with an emphasis on ideology and adherence to Xi Thought, and further efforts to increase the institutional capacity and independence of the courts relative to other state and social actors. These efforts are not intended to increase, and have not increased, the independence of the judiciary vis-à-vis the Party, particularly central Party leadership, though they at times may strengthen the courts relative to lower-level Party organs and do prohibit, as a general rule, individual Party members from intervening in judicial affairs or in the courts' handling of individual cases.⁵¹

Seventh, there have been reforms to the system of political-legal committees and the role they play in intermediating between the Party and state systems. The fortunes of political-legal committees have varied over time. There were calls for their abolishment during the heady days prior to Tiananmen as part of the effort to separate the Party and the state. In 1988, the Central Political and Legal Affairs Commission ("CPLC") was downgraded to a small leading group, and its mandate restricted to research and policy rather than an active role in daily governance. But after Tiananmen, it was restored to Commission status and tasked with ensuring stability. The political-legal system gained power during the Hu era, when faced with a rapid rise in protests and demonstrations over corruption and difficult to resolve socioeconomic disputes, the Party assigned a high priority to social stability, establishing social stability maintenance committees to deal with the problem. These committees fell under the leadership of the CPLC headed at the time by Zhou Yongkang, a member of the Politburo Standing Committee. But when Zhou grew too powerful and threatened Xi's grip on power, Zhou was "purged," expelled from the Party, and convicted of bribery, abuse of power and the intentional disclosure of state secrets. He was sentenced to life in prison until his death in 2015. In the wake of Zhou's departure, the political-legal system's power ebbed once more, with the new head not given a Politburo Standing Committee position like his predecessor. In 2017, all 31 provincial heads of CPCL who took office under Zhou were removed (Tsang and Cheung 2023). Once Xi had reasserted control over the CPCL and political-legal

Footnote 50 (Continued)

litigation, etc., integrating resources and forces for resolution of conflicts and disputes at the grassroots level, and give full play to the role of non-litigation dispute resolution mechanisms. Deepen the reform of the legal aid system and expand the coverage of legal aid. Promote administrative adjudication work in an orderly manner and explore expanding the scope of application of administrative adjudication."'). For why China will continue to experiment with different types of dispute resolution, and the limits of existing theories to explain what the role of courts in middle-income countries should be based on the role of courts in high-income countries, and the limits of theories based on skeptical assumptions about why authoritarian regimes turn to law in the first place, see Peerenboom (2008). For an empirically supported overview of judicial reforms and developments in the Xi era, see He (2024).

⁵¹ Peerenboom (2014b), arguing that judicial reforms were meant to strengthen the judiciary vis-à-vis state and social actors but not the Party, particularly the central Party. This has been confirmed in the Xi era. See, for instance, the SPC Opinions on Deepening Reform—Fifth Five-Year Program: "Comprehensively strengthen the Party's absolute leadership over the work of the people's courts. Earnestly implement the 'PC's Political-Legal Work Regulation to complete work mechanisms that preserve the Party's authoritative and centralized, unified leadership, and strictly implement provisions on the Party organizations of political-legal organizations requesting instruction on important matters from Party committees".

system as a whole, he was free to assign it a new role more to his liking. In 2018, the CPLC was given responsibility for overseeing public security and social stability, and dealing with religious cults, and the committees and leading small groups that had been responsible for each of these areas were abolished.

In 2019, the Party Central Committee issued the Regulation on the CCP's Political-Legal Work, setting out the rules for the political-legal system in the Xi era of comprehensive rules-based governance. One thing was clear, there would be no more going rogue and challenging Xi's power. Article 1 states unequivocally that the purpose of the Regulation is to "uphold and strengthen the Party's absolute leadership of political-legal work."⁵² Political-legal work must adhere to Xi Jinping Thought on Socialism for a New Era and "resolutely safeguard General Secretary Xi Jinping's core status as the core of the Party." The Regulation sets out in great detail the powers and roles of the CLCP and its lower-level counterparts and places them under the control of the corresponding level Party Committee. The Regulation also sets out detailed rules regarding under what circumstances and for what issues political-legal committees are to seek instructions and report on major matters and to whom. In short, organizationally, the lines of power have been greatly clarified both horizontally and vertically.

The Regulation delineates the main responsibilities of political-legal committees, including a prominent place for ideological work. They are also charged with research and policy setting, overseeing and supervising judicial work, monitoring and ensuring public security and social stability, and proactively developing practical solutions. In all cases, they are to abide by the Constitution and law in carrying out their duties. Notably, the Regulation does not authorize political-legal committees to intervene in the way courts and government agencies handle individual cases or make decisions on specific issues. In the past, this had been a controversial issue.⁵³ Although the Regulation has formalized the role of political-legal committees, how all of this will work in practice remains to be seen.⁵⁴ It is one thing to lay out a rational rules-based organizational structure and another to actually get such a complex system with so many interrelated and moving parts to work as planned in a country as large and diverse in terms of economic development and institutional capacity as China.

Eighth, there has been a more expansive role for Party groups in all sectors, although the role of Party groups varies depending on the type of entity and the sector.⁵⁵ For instance, although both state-owned enterprises and private enterprises, including foreign-invested enterprises, are required by law to establish Party groups,

⁵² Regulation on the Communist Party of China's Political-Legal Work (chinalawtranslate.com).

⁵³ Even during the Hu years, some measures were taken to reduce intervention by Party committees and political-legal committees in ongoing cases, and there were proposals to prevent political-legal committees from intervening in cases other than those involving national security and foreign affairs. See Dui Hua Foundation (2013); "Community Party committees are meddling less in courtrooms: judges," *South China Morning Post*, Dec. 12, 2013.

⁵⁴ Apparently, Xi was not satisfied with the way things were going, and thus he "launched a new rectification-cum-anticorruption campaign" targeting the political-legal system in 2020. Tsang and Cheung (2023).

⁵⁵ Party Branch Work Regulations, art. 10.

the role of Party groups in SOEs is much more expansive. In 2019, the Central Committee of the CCP approved regulations that set out the main roles for Party organizations in SOEs,⁵⁶ require SOEs to spell out the roles and responsibilities of Party organizations in their Articles of Association, provide guidelines for assigning roles for Party organization members on the board or other senior management bodies, and set forth the issues on which Party organizations shall weigh in. In contrast, Party organizations in private enterprises are not required to, and generally do not, hold leadership positions or participate in major company business decisions. Instead, Party organizations are mainly charged with ensuring the company complies with generally applicable laws, overseeing the trade union, and promoting the healthy development of the company.⁵⁷

Ninth, there has also been continued reliance on informal norms, conventions and practices despite the efforts to transform governance of both the Party and state systems into a formal system of rules. Informal norms, conventions and practices are by their nature difficult to capture in empirical studies. Nevertheless, we can be reasonably sure that they continue to play a significant role in China because they play a significant role in any complex political-legal system. With respect to China specifically, although the leadership role of the Party was incorporated into the Constitution, what that entails in practice has yet to be fully worked out and codified, as many of the still evolving developments described in this section demonstrate. For instance, the merger of institutions and the combination of Party and state functions have given rise to novel issues that have yet to be addressed formally in a systematic way, including: how and by whom are decisions to be made and powers and duties allocated in these new institutions; what is the legal status of jointly-issued documents in court cases; and what is the role of Party policy statements in interpreting and implementing state law. Similarly, the expansion of Party groups and their role in the state sector, including the judiciary, is intended to facilitate communication of central Party policies and goals, and to ensure that state actors implement laws and regulations in a way that is consistent with central Party policies and goals, as well as with Xi Thought more generally.⁵⁸ But how Party organizations carry out

⁵⁶ Regulations on the Work at Primary-Level Party Organizations of State-Owned Enterprises.

⁵⁷ CCP Constitution, art. 33.

⁵⁸ See the SPC Opinions on Deepening Reform—Fifth Five-Year Agenda, (“give play to the role of the Party organizations in understanding policy directions, reform directions, and case handling guidance; and ensure the basic theory, basic line, and basic strategy of the Party is continuously and fully implemented in all work of the people’s courts.”). See also Plan on Building the Rule of Law in China (2020–2025) (chinalawtranslate.com): “(18) Strengthen political and organizational safeguards. Party committees (Party groups) and leading cadres at all levels must support legislative, law enforcement, and judicial organs in their work, and support judicial organs in exercising their powers independently and impartially in accordance with the law. Organization departments at all levels of the Party must give full play to their functions to ensure the advancement of the rule of law in China. The central and provincial Party and government departments must clarify the institutions responsible for the rule of law in their respective departments. Party groups (Party committees) of legislative, law-enforcement, and judicial organs at all levels must strengthen leadership and perform their duties with due diligence. Party organizations and Party members at the grassroots level must give full play to their role as fighting fortresses and vanguards to ensure the implementation of the Constitution and laws. Strictly implement the *Provisions on Records, Notifications and Accountability of Leading Cadres Interfering in Judicial Activities and Intervening in the Handling of Specific Cases*”.

this mission within the judiciary and other state organs is likely to vary in practice and depend on many factors, including individual personalities and personal relationships.

Tenth, the Party continues to take the lead and determine the outcomes in political cases deemed threatening to the Party or the nation. In some cases, the Party has sought to provide a legal basis for its actions, as in the passing of a National Security Law that could be used to crush opposition in Hong Kong. Amendments to the Criminal Law and Criminal Procedure Law also provided a legal basis for dealing with cases that threatened social stability or lawyers and activists whose activities the Party finds threatening. But even with more repressive tools in hand, critics argue many cases involve extralegal measures or actions that are at odds with stipulated procedures, including limitations on access to lawyers and abuse of discretionary rules to extend detention.⁵⁹

2.3 Ongoing Reforms of the State Sector to Meet (Thin) Rule of Law Requirements and “Foreign-Related Rule of Law”

The third part of Xi’s agenda is to continue the ongoing efforts to reform the legal system to meet thin rule of law requirements. The reform agenda is set out in annual work reports from the SPC, SPP and State Council, in the NPC’s annual and 5-year legislative agendas, and in various other 5-year plans, including the SPC’s Fifth Five-Year Judicial Reform Plan and the first ever 5-year plan for the rule of law. Many of the reforms in these documents are highly technical in nature and generally fly under the radar of the general public and the media. A detailed discussion of the many reforms that fall into this category is beyond the scope of this article.⁶⁰

However, there is one new area that does merit discussion—the effort to build out the system of foreign-related law that falls under the rubric of “foreign-related rule of law.”⁶¹

⁵⁹ Fu (2022), noting conflicting trends in criminal justice, “such as the co-existence between exceptional and extra-legal measures like the excommunicado detention of political offenders, on the one hand, and a decisive move to bring interrogation detention in ordinary criminal cases under enhanced legal and judicial control on the other.” Pils (2020), noting increased reliance on forced medication and self-criticism under conditions of duress, and the displaying of political detainees and convicts in “propagandistic fashion as enemies to be feared and crushed”.

⁶⁰ For an overview of the reform agenda as set out in the fourth plenum, see Peerenboom (2014c). It should be noted the most Chinese legal scholarship deals with issues that fall into this category, rather than theoretical debates about rule of law or the impact of Xi’s thought on the legal system.

⁶¹ Plan on Building the Rule of Law in China (2020–2025) (chinalawtranslate.com) sets out the general framework and the goals. Much of the agenda is not new, including the calls to increase judicial assistance with respect to extradition and repatriation of criminal suspects, which China needs to go after corrupt officials who have absconded abroad with their ill-gotten gains. Similarly, China has advocated international cooperation in law enforcement and security to combat violent terrorist forces, ethnic separatist forces, religious extremist forces, drug trafficking, smuggling, and transnational organized crime. Some newer additions reflect China’s growing economic presence abroad through the Belt and Road Initiative, which has resulted in the potential for commercial disputes and thus the emphasis on establishing arbitration institutions. See Erie (2020). Some parts reflect the reality of more Chinese citizens living abroad, and the need to protect them. The Plan also calls for the promotion of the rule of law

The Foreign Relations Law, passed in 2023, is one of the cornerstones of foreign-related rule of law. The law sets out China's official foreign policy goals: safeguarding China's sovereignty, national security and development interests; protecting and promoting the interests of the Chinese people; building China into a great modernized socialist country; realizing the great rejuvenation of the Chinese nation; promoting world peace and development; and building a community for the shared future of humanity. Other long-standing foreign policies such as the five principles of peaceful coexistence and a call for peaceful development also make an appearance.

The law includes provisions regarding diplomatic relations and cultural exchange, economic cooperation and other forms of interaction with other countries, and addresses China's relationship to the United Nations and international organizations. In addition, the law sets out the respective roles and responsibilities of Party and state organs, with the Party playing a centralized leadership role in foreign affairs and diplomatic relations. State organs such as the National People's Congress and its Standing Committee, the State Council and the Ministry of Foreign Affairs are assigned responsibility for ratifying treaties, state-to-state exchanges, and the daily management of foreign relations and foreign affairs.

Looked at more broadly, there are three aspects to the program to build foreign-related rule of law. The first is defensive in nature, and intended to help China ward off what it considers to be foreign attempts at containment in the hopes of preventing China's rise, while allowing China to pursue its interests at home and abroad without foreign meddling.⁶² In a 2018 speech, Xi declared, "In foreign struggles, we

Footnote 61 (Continued)

in foreign countries, and the strengthening of multilateral and bilateral dialogue on the rule of law and other exchanges where those involved should tell China's rule of law story well, propagating Xi Jinping Thought on Rule of Law far and wide.

⁶² In announcing a new National Security Strategy in 2022, President Biden identified China as the biggest geopolitical challenge for the U.S. and the international order, claiming that China "is the only competitor with both the intent to reshape the international order and, increasingly, the economic, diplomatic, military, and technological power to advance that objective." National Security Strategy (2022). To back up the tough words with concrete actions, the Biden administration expanded export controls to cover advanced computer chips in hopes of preventing China from developing supercomputers and semiconductors. The move, justified as a response to China's rapid and aggressive military development, will also significantly impede China's economic development. The U.S. has long complained about China's mercantilist policies, stealing of commercial secrets, and toleration of intellectual property violations. But it was the ambitious agenda set out in *Made in China 2025* to upgrade China's capabilities in manufacturing and new technologies such as AI, 5G, electric vehicles and biotech, and to foster through industrial policies and state subsidies the development of national champions such as Huawei and BYD to compete with foreign companies and increase global market share for PRC companies, that led to escalating tensions and the more hawkish approach of the Trump trade war with China, the imposition of tariffs, and then the Biden National Security Strategy. In recent years, China has increasingly portrayed U.S. tariffs, trade restrictions, and attempts to decouple supply chains and decrease economic interdependence as an existential threat to China's economic development and national security. The PRC National Security Law passed in 2015 expressly incorporates economic security and development, including the protection of key sectors, under the umbrella of national security. See National Security Law of the People's Republic of China (stanford.edu), articles 19 and 20. In March 2023, Xi Jinping named the U.S. as the driving force behind the containment strategy: "Western countries led by the United States have implemented comprehensive containment, encirclement and suppression against us, bringing unprecedented severe challenges to our country's development." U.S. Department of Defense (2023).

must take up legal weapons, occupy the commanding heights of the rule of law, and dare to say no to spoilers and disrupters globally.”⁶³ This defensive aspect consists of increased extraterritoriality of PRC laws,⁶⁴ new legal tools to block the extraterritorial effect of other countries’ laws,⁶⁵ a retaliatory Tariff Law that allows China to hit back at countries that impose tariffs on PRC goods, an Anti-Foreign Sanctions Law that asserts China’s right to take counter-measures against any country believed to be discriminating against Chinese citizens or organizations, and regulations that would allow China to penalize third party countries that went along with anti-China sanctions (MOFCOM 2021). Many of these laws are based on foreign models, including the laws of the U.S. and Europe. Similarly, in response to the ever-expanding U.S. Commerce Department entities list of Chinese companies that U.S. companies are not allowed to do business with, China has retaliated with its own Unreliable Entities List.⁶⁶

The second aspect involves the type of activities that other countries, particularly superpowers, take to shape the international order in ways consistent with their national interests, policy preferences, and normative ideology. These include, for example, training people in international law and the laws of foreign jurisdictions; attempts to get one’s own nationals appointed to key positions in the U.N., the WTO, the International Court of Justice and other international organizations; and attempts to influence standard setting in key technological areas in ways that promote the commercial interests of domestic companies.

The third aspect involves China’s attempts to play a more positive and constructive role in world affairs, and to increase its global reputation and soft power. In 2023, Xi personally announced a Global Civilization Initiative (“GCI”) in conjunction with a Global Development Initiative (“GDI”) and a Global Security Initiative (“GSI”) in a keynote address at an event that brought together over 500 political leaders from over 150 countries (Yang 2023). The Initiatives are largely anodyne

⁶³ The state-affiliated *Global Times* described the PRC Foreign Relations Law as a “key step to enrich the legal toolbox against Western hegemony.” Ng (2023).

⁶⁴ The Foreign Relations Law reflects this more assertive or aggressive approach to diplomacy under Xi by providing for increased extraterritorial reach of Chinese laws, countermeasures if other countries threaten China’s interests, and punishment of “any organization or individual who commits acts that are detrimental to China’s national interests in violation of this Law and other applicable laws in the course of engaging in international exchanges.” A number of other laws have been amended to increase their extraterritorial application, thus creating “various avenues for the government to assert its preference and authority abroad,” including the Anti-Monopoly Law, the Cybersecurity Law, the Hong Kong National Security Law, the Data Security Law and the Personal Information Protection Law.

⁶⁵ On October 28, 2018, China passed the International Criminal Judicial Assistance Law (ICJAL). The Law has been characterized as a blocking statute, although it does much more than that, including clarifying the rules for an expansion in judicial assistance. Rohlfen et al. 2019, claiming the “ICJAL effectively serves as a blocking statute that requires approval by PRC governmental authorities before any institution, organization or individual within the territory of the PRC can provide evidence, materials or assistance to any foreign countries’ [sic] criminal proceedings”.

⁶⁶ In 2023, China enacted a State Immunity Law that abandons absolute immunity in favor of restricted immunity. The Law of the People’s Republic of China on Foreign State Immunity (cdurl.cn). This means that other sovereign states can be sued in Chinese courts without their consent under certain circumstances. But it also makes it more difficult for China to argue that it cannot be sued without its consent in other countries.

in nature, repeating abstract feel-good slogans that Xi has been circulating for some time. For example, the four civilization initiative pillars are: respecting the diversity of world civilizations; promoting the common values of all humanity; attaching importance to the inheritance and innovation of civilizations; and strengthening international people-to-people, and cultural, exchanges and cooperation. The GSI is based on six principles: promoting comprehensive, cooperative, and sustainable security; respecting the sovereignty and territorial integrity of all countries; abiding by the purposes and principles of the UN Charter; taking the legitimate security concerns of all countries seriously; peacefully resolving differences and disputes between countries through dialogue and consultation; and maintaining security in both traditional and nontraditional domains.⁶⁷

Similarly, as part of the GDI, Xi promised to “foster a development paradigm featuring benefits for all, balance, coordination, inclusiveness, win–win cooperation and common prosperity.” (CDIK 2023). To be fair, the GDI has since been developed to highlight eight priorities: poverty reduction, food security, pandemic response and vaccines, development finance, climate change and green development, industrialization, the digital economy, and connectivity in the digital age. The Center for International Knowledge on Development (CDIK 2023) has put out a table of more specific “deliverables” in terms of platform building, partnerships, funding support, capacity building, project coordination, and knowledge sharing, each with their own subcategories of specific items, many of which have been accomplished, while for some substantial progress has been made and others are still in the works.

How one views these developments depends largely on one’s political and normative perspective. From Xi’s perspective, the current rules-based international order reflects a liberal bias and the influence of Western powers that shaped the international order in light of their own national interests.⁶⁸ On this view, Western liberalism is universalist in its ambitions: everyone should enjoy universal human rights and the opportunity to live freely and autonomously in democratic states under the rule of law. To that end, the U.S., for example, has actively sought to promote democracy abroad, supporting the overthrow or destabilization of authoritarian regimes when so doing suited U.S. interests.⁶⁹ Similarly, liberalism’s commitment to

⁶⁷ The Global Security Initiative Concept Paper (mfa.gov.cn).

⁶⁸ The Communiqué on the Current State of the Ideological Sphere, an internal document known as Document No. 9 circulated within the Party by the General Office of the Central Committee in 2013, argued that given “Western nations’ long-term dominance in the realms of economics, military affairs, science, and technology,” the current international order, with its emphasis on constitutional democracy and universal values, obscures “the essential differences between the West’s value system and the value system we advocate, ultimately using the West’s value systems to supplant the core values of socialism.” Thus, “the promotion of western constitutional democracy, with its distinct properties and aims, including the separation of powers, the multi-party system, general elections, and independent judiciaries, is being used to undermine the Party’s leadership and to split the nation by fostering a color revolution.” An English translation is available at <http://www.chinafile.com/document-9-chinafile-translation>.

⁶⁹ Some cases involved military support or intervention, as in Iraq, Libya, Panama and Grenada. Other cases involved support for opposition groups as in Syria, Iran, Venezuela and Ukraine. To be sure, the U.S. has also played a role in overthrowing or destabilizing democratic regimes when it suited U.S. interests in Iran, Guatemala, Chile, Brazil, and Nicaragua. See Kinzer (2003), Schlesinger and Kinzer (2005), Blum (2014), Skidmore (1988), LeoGrande (1998) and LaFeber (1989).

the universality of human rights inevitably impinges on state sovereignty. In extreme cases, it legitimates intervention on humanitarian grounds if there is widespread and systematic violation of basic rights, as in Kosovo. In less extreme cases, it calls for shaming and blaming bilaterally and in multilateral venues as a normal course of business. For years, the U.S. has regularly issued a report critical of human rights in China, and recently both the Trump and Biden administrations have accused China of committing genocide in Xinjiang.

From Xi's perspective, even the U.N.'s definition of rule of law is biased toward liberal democracies. The United Nations defines the rule of law as:

a principle of governance in which all persons, institutions, and entities, public and private, including the State itself, are accountable to laws that are publicly promulgated, equally enforced and independently adjudicated, and which are consistent with international human rights norms and standards. It requires measures to ensure adherence to the principles of supremacy of the law, equality before the law, accountability to the law, fairness in the application of the law, separation of powers, participation in decision-making, legal certainty, avoidance of arbitrariness, and procedural and legal transparency.⁷⁰

This definition combines elements of a thin conception of rule of law that would apply regardless of the type of political system with elements of a thick liberal democratic rule of law conception, including separation of powers and a commitment to international human rights norms that would include the ICCPR that China has signed but not ratified.

In response, China has begun to develop and promote its own ideology to counter liberalism. For years, China has sought to challenge the universality of Western liberalism and human rights, beginning with the debate on Asian Values and continuing through more recent attempts to introduce a Chinese conception of human rights at the U.N.,⁷¹ while simultaneously seeking to play a bigger role on the U.N. Human Rights Council and other international bodies. And now, under Xi, China is developing and promoting its own theory of socialist rule of law with Chinese characteristics to challenge the globally dominant liberal democratic conception of rule of law.

Seen in this light, the GCI along with the other initiatives are an attempt to generate a normatively attractive ideology to deflect concerns about China's growing economic power and geopolitical influence and the tensions that it has given rise to, particularly with respect to growing competition between China and the U.S. For Xi, the attempt to expand the reach of Chinese civilization—"to better tell China's stories and to make China's voice heard"—is unquestionably an integral part of comprehensive national strength and international influence. The GCI, with a modern reinterpretation of the traditional Chinese notion of *tianxia* ("all under heaven") as

⁷⁰ United Nations, What is the Rule of Law?, UNRIC Library Backgrounder: Rule of Law.

⁷¹ Tiezzi (2021). On the Asian Values debates more generally, see Peerenboom (2002b). For an overview of China's official position on human rights, see Peerenboom (2007, pp. 83–90); see also, An Introduction to Xi Jinping Thought on Rule of Law, pp. 57–61. Neagli (2023) argues that "China is seeking to alter, but not undermine or replace, the international human rights order," highlighting in particular China's greater emphasis on sovereignty and non-intervention, the right to development and the relationship between rights and duties.

the central theoretical construct and foundation, is the soft power counterpart that complements China's increasing hard power.

For its critics, the GCI is a transparent attempt to legitimate and make universally acceptable Sinic civilization and the hegemony of China at the center of the East Asian region,⁷² and the GDI and GSI are an attempt to appeal to the low- and middle-income countries of the Global South, while driving a wedge between high-income liberal democratic countries.⁷³

For those wary of Xi's ambitious goal for China to become a modern socialist country that leads the world in comprehensive national strength and international influence, the real purpose then behind the drive to develop and promote China's own version of rule of law and develop "foreign-related rule of law" is to undermine the current international order led by the U.S. and to legitimize authoritarian political systems and norms. Rather than focusing on the lofty ideals and all the talk about win-win solutions, they highlight China's real-life actions in threatening the security of Taiwan and endangering the peace in the South China Seas, noting that the Permanent Court of Arbitration "concluded that there was no legal basis for China to claim historic rights to resources within the sea areas falling within the 'nine-dash line.'"⁷⁴ They also call attention to China's support of Russia's invasion of Ukraine as part of its "special relationship," notwithstanding its official statement

⁷² Zhao Tingyang, the main force behind the modern reinterpretation of tianxia, has responded to the criticism that his newly conceived tianxia is just ideological cover for Pax Sinica by denying that is his intention and by trying to distance himself and the tianxia ideal from the political realities of contemporary China and the ambitions of Xi Jinping and the CCP. But in this postmodern age, the intentions of the author do not control the meaning of the text, particularly when the paramount leader has expressly linked the development of Chinese discourse and narratives to national strength and international influence in a public speech to the National Congress of the CCP, in which he also declared that ideological work, as the soul of the nation, must be subject to the leadership of the CCP. Full text of the report to the 20th National Congress of the Communist Party of China (china-embassy.gov.cn).

⁷³ Tsang and Cheung (2023): "Xi's tianxia worldview means that he requires the Chinese Government to take a Sino-centric approach to how China interacts with the rest of the world. It is self-centered, hierarchical, illiberal, and coercive but is presented in a language of altruism, moralism, and inclusiveness." Freeman and Stephenson (2022): "The GSI thus can be seen as having three main purposes: ... it offers rhetoric China can deploy to try to legitimate the narrative that the United States and NATO provoked the war in Ukraine; ... it is also designed to enable Beijing to promote the notion that the United States and its allies are the problem and China is the solution when it comes to international security. Finally, it provides a platform China can use to build new security relationships that serve its expanding global interests." For a more positive account of why China's vision for a new global order may have considerable appeal to many in low- and middle-income countries, see Erie (2023b), noting China's "vision emphasizes multilateralism, international organizations, soft law, and cautious trade liberalization; the vision equally prioritizes, sovereignty, security, social stability, and socio-economic rights over civil and political ones."). Schuman et al. (2023): "In its outreach to the Global South, China has institutionalized cooperation, provided serious financial support, and created domestic programs to more effectively implement policy."). In general, citizens in high-income countries have a significantly less favorable view of Xi and China's role in global affairs and development than citizens in middle-income countries. China's Approach to Foreign Policy Gets Largely Negative Reviews in 24-Country Survey | Pew Research Center.

⁷⁴ The Tribunal also found that China had violated the Philippines' sovereign rights in its exclusive economic zone, and inflicted irreparable harm to the marine environment. See 1801 (pcacases.com).

of neutrality and offer to mediate peace negotiations⁷⁵; China's ongoing border skirmishes with India; its "coercive and risky operational behavior" in intercepting the aircraft and ships of the U.S. and its allies conducting lawful operations in the region; its continued military buildup, including an expansion of overseas logistics and military bases (U.S. Department of Defense 2023); and the "bullying" of other countries in the region.⁷⁶

3 Is Party-State Socialist Rule of Law with Xi Jinping Characteristics Rule of Law?

3.1 Squaring the Circle: Party-State Socialist Rule of Law and the Leadership Role of the Party

Can the leadership role of the Party be squared with rule of law? As noted above, Xi Jinping himself has acknowledged the core issue in the establishment of socialist rule of law is the relationship between the leadership of the Party and governing according to law. As we have also seen, many people reject socialist rule of law on the grounds that the leadership role of the party is not compatible with the rule of law. For some, this is a theoretical claim and for others it is an empirical claim that depends on what the leadership role of the party actually is.

The theoretical version of the critique is that the leadership role of the Party puts the Party above the law and is therefore at odds with the principle of "the supremacy of the law," which requires all persons, institutions, and entities, public and private, including the state itself, to be accountable to law, as the U.N. definition puts it. The response of defenders of the theoretical coherence of socialist rule of law has been, and continues to be under Xi in his conception of Party-state socialist rule of law, that the Party is not above the law. As a formal matter, as we have seen, both the Party constitution and the state Constitution require that the Party and all Party organizations and members abide by the Constitution and state laws and regulations. Not only has Xi kept these provisions in place, he has continually reaffirmed that the Party, Party organizations and all Party members—which presumably, and certainly logically, includes Xi himself—must act in accordance with law and be accountable to law, thus meeting at least as a formal matter the principle of the supremacy of the law.

What is new is that under Xi the Constitution has been amended to provide for the leadership of the Party in Article 1, as discussed above. In addition, Xi has pushed to provide a firmer legal basis for Party leadership by incorporating the leadership of the Party in state laws and other areas as well. Moreover, the Five-Year

⁷⁵ Michael Schuman et al. (2023) argue that the GSI adopts the concept of "indivisible security" that Russia invoked to justify the unlawful invasion of Ukraine by blaming the US-led NATO expansion as the "original sin" that led to the war, and which can be used to justify its aggressive actions in the South China Seas and potentially a military invasion of Taiwan.

⁷⁶ "Defiant Australia PM responds to China's list of 14 grievances," *South China Morning Post*, Nov. 19, 2020.

Plan for Building the Rule of Law in China explicitly calls for the incorporation of the Party's leadership role into state laws and regulations, as well as in the organic laws of state institutions and the articles of association of other economic and social organizations.

Are these changes significant from a rule of law perspective? On the one hand, legal theorists, particularly those who adopt a more positivist or formalist approach to legality and rule of law, may see the legalization or formal recognition of the leadership role of the Party in law as an important development that makes socialist rule of law more theoretically coherent and consistent with rule of law principles.

On the other hand, such changes will not satisfy critics who believe that the key requirement of rule of law is that it imposes meaningful restraints on sovereign power, whether that be the Party or the state. For the critics, the issue is not the formal legal status of the leadership role of the Party, but what that role is and whether it is consistent with rule of law requirements, whether understood in thin rule of law terms or in terms of the globally dominant liberal democratic thick conception of rule of law. In general, under Xi, the leadership role of the Party has expanded, not contracted, in all spheres of life including the legal sphere. Accordingly, they are even more likely to reject socialist rule of law as rule by law.

3.2 Consistency with Thin Rule of Law Criteria

Turning from the leadership role of the Party as an abstract principle to the Party's role in practice, many of the developments under Xi raise issues from a thin rule of law perspective: the increase in the number and scope of Party rules, which now often touch on matters that fall within the jurisdiction of the state sector; the issuance of jointly issued Party-state documents; the merger of Party and state organs and the working relationship between Party organs and state organs under the one-door, two nameplate approach; the expanded role for Party organizations in the courts, state agencies and social organizations; the role of a reinvigorated political-legal committee system; the increased emphasis on ideology and adherence to central Party policies and Xi Thought; and the increased emphasis on "core socialist values" in implementing laws and regulations.

Let's start with the overhaul of the system of intra-Party rules under the banner of ruling the party in accordance with rules. Looked at in isolation, the efforts to bring order to the intra-Party rules system and to govern the Party in accordance with rules is a positive development in terms of making the political-legal order as a whole more consistent with the thin rule of law criteria that rules be general,⁷⁷ public, prospective, clear, consistent, capable of being followed, stable and fairly enforced. Over time, the reforms should accomplish much the same results as the efforts to bring order to the state legislative system. Indeed, the reforms of the intra-Party rules system have been modeled on and followed the same path as the reform of the state legislative system. The state legislative system, while far from perfect, is certainly much improved.

⁷⁷ "General" here means generally applicable—the law or rule in this case must not be aimed at a particular person and must treat similarly situated people equally.

Of course, reforms of the intra-Party rules system are technically not rule of law reforms in a formal sense since Party rules are technically not “law” in a formal sense. Nevertheless, in a broader sense, such reforms could be said to have made the political-legal system as a whole more consistent with thin rule of law criteria at least when the system of intra-Party rules is considered independently of the state legal system.⁷⁸

However, the issue is more complicated when the intra-Party rules system is considered in relation to the state legal system. When looked at more holistically, the development of the intra-Party rules system, including the increase in the number of Party rules that now overlap with state laws or touch on subject matters addressed in state laws, has increased the potential for inconsistency and given rise to debates about the legal status of Party rules and how they are to be interpreted and implemented in practice, thus undermining the certainty and stability of the legal system.

Take for instance the debates about the legal status of Party rules and their role in interpreting and implementing state laws and regulations. Some commentators have claimed that the mainstream view is now that Party rules are “law” or have the force of laws.⁷⁹ Strictly speaking, this is incorrect as a matter of both law and policy. Party rules are not recognized as “law” in the Law on Legislation. As we have seen, the official Party view, and the view of Xi, is that there needs to be a clear distinction between Party rules and state laws and regulations as a formal matter; that Party policies must be transformed into state laws and regulations to be authoritative sources of “law” with binding legal effect on state actors; and that Party organs and Party members must abide by the state Constitution and laws.

⁷⁸ The intra-Party rules system and the state law system are however two different systems, each with their own internal logic and operating rules and norms. That the changes to the intra-Party rules system will make the political-legal system more consistent with thin rule of law requirements does not entail that the two systems are the same, serve exactly the same purposes, will operate in precisely the same way or will share the same degree of compliance with thin rule of law requirements. After all, the intra-Party rules system is fundamentally a *political* system, and the state system a *legal* system. Indeed, this is one reason why Party rules are *not* laws and must be distinguished from state laws, and cannot simply be brought into the state law system by tweaking the Law on Legislation. The question therefore becomes how the two systems are similar and how they are different with respect to purposes, formal features, relationship to and role of conventions and practices, ease of modification of rules, method of interpretation and implementation, training and education of Party members versus judges, lawyers and other state legal actors, and so on. The critical issue, for which we currently lack adequate data, is how the two systems will interact in practice across a wide range of potential contact points. Put differently, this article has attempted to explain the “logic,” as it were, of the political-legal system as a totality in terms of Party-state socialist rule of law. Within that, there are two subcomponents or systems: the Party system (with the intra-Party rules system being one component of the Party system) and the state system (with law and legal institutions broadly construed, including legislative and administrative bodies, the police, bar associations etc. being the main components of the state system). Each of these systems has their own “logic” as well. What we need to do at this point is map out the logic of how these two sub-systems operate and interact both theoretically and more importantly in practice to constitute the lived reality of Party-state socialist rule of law. It should be noted that explaining the “logic” of any political-legal system in terms of rule of law necessarily requires a thick conception of rule of law that goes beyond the narrower elements of a thin conception of rule of law.

⁷⁹ Fu (2019b). It is important to note that Fu himself does not hold this view. See Fu and Zhang (2022): “Party rules and legal rules still belong to two largely different universes with different operating logic. ... while Party rules may be the source of law, they are not themselves law”.

Nor is it likely that Party rules in general will be given the status of “law” in the future, as it would create too many practical problems and in any event is not necessary. First, the Law on Legislation would have to be amended to explicitly provide for the legal status of Party rules, and to clarify their status in the hierarchy of existing state laws, regulations and normative documents. Second, giving Party rules the status of law would give rise to potential conflicts and lead to inconsistencies with existing laws and regulations. What institution would be responsible for ensuring consistency between Party rules and state laws and regulations? Would a Party organ, a state organ such as the National People’s Congress, or a newly created hybrid Party-state organ be responsible for striking down Party rules inconsistent with the Constitution and state laws? Or would state laws need to be amended to be consistent with central Party rules? Ensuring consistency is already an issue given the proliferation of Party rules and the expanded scope of subject matter. But at least at this point, Party organs can be responsible for ensuring the internal consistency of Party rules and their consistency with state laws and regulations; state organs can continue to deal with the internal consistency of state laws and regulations; and political-legal committees can facilitate the process by bringing such conflicts to the attention of the relevant authority. Third, taking Party rules as binding “law” would entail major changes for judges and other legal actors who would now need to be able to search not only state law databases but Party rules databases to find out what rules to apply, to give just one relatively trivial example. But more importantly, it is not necessary to give Party rules the effect of law because the Party can always transform Party rules into state laws and regulations if it wants. It is true that this process could take time and involve passing new laws or amending existing ones. But that is true of any legal system. In general, executive agencies are able to respond quickly when necessary to pressing events given their executive powers. In addition, most legal systems provide for the declaration of a state of emergency that would provide enhanced power to state actors in truly urgent circumstances.

Nevertheless, even if Party rules haven’t been formally given the status of law, there have been instances where courts have cited Party rules in deciding cases, raising issues from a thin rule of law perspective. One study found some 5000 cases out of 42 million where courts cited or at least referenced Party rules and documents in the legal decision—in other words, in just 0.01% of cases.⁸⁰

⁸⁰ Liebman (forthcoming 2024). Moreover, Party documents were cited as the sole or primary legal basis in only about one-third of such cases, in other words in about 0.004% of all cases. It is important to note however that the study was based on the citation of Party documents in the “decision” section of cases. As discussed below, Party documents could play a role in cases without being cited in the decision section in various ways. Covering the period from 2014, the year of the Fourth Plenum, to 2018, the study provides a useful baseline for assessing to what extent the transition to socialist rule of law with Xi

It appears that these cases fall into several categories.⁸¹ The first and largest category is historical cases where there is no state law available and where Party rules and policies governed at the time, for example with respect to land boundary disputes from decades ago. This is a relatively minor issue that can be considered a historical anomaly or legacy effect that does not have much practical or theoretical significance for the rule of law. It is also an issue that could in theory be addressed by tweaking the Law on Legislation to address this unusual and exceptional situation without altering the basic principle that Party rules are not “law.”

A second category is labor, civil or commercial cases, “including over the legality of Party entities engaging in business, the validity of contracts entered into by government-backed companies, and labor disputes involving officials.”⁸² In this type of case, Party rules are relevant to issues such as whether the Party members or Party organs were acting in an authorized way or exceeding the scope of their responsibilities. These cases are similar to cases in other legal systems where state actors or organs are sued and there are claims of state immunity. The Party rules are often being treated as evidence rather than as “laws” per se. Party rules might also be cited in a similar way in cases involving defamation, for example, where the claim is that Party members cannot be held liable for defamatory statements made in the course of Party debates, just as congressman and parliamentarians cannot be held liable for defamation for statements made during congressional or parliamentary debates.⁸³

Footnote 80 (Continued)

Jinping characteristics will lead to a change in the role of Party rules in deciding cases going forward.

⁸¹ Id. (finding that cases fell into four general categories: cases involving historical land and property disputes; various labor, civil and commercial cases involving personnel decisions, business licenses and the appropriate party to be named in litigation; citations to Party documents “to mirror Party policies and align outcomes with current Party policy goals, or to resolve hot-button social issues, most notably land takings,” and finally, to reject the legal validity or applicability of Party documents to the case at hand). The study found that when national level Party documents were cited, they were cited as the sole or primary legal basis in 34% of the cases, 30% as a supplemental legal basis, 6% to refuse jurisdiction or reject the applicability of a Party document, and 29% of the time in a non-substantive fashion such as mentioning a document in the procedural or factual history. Local Party documents were given less status, being cited as the sole or primary legal basis in 11% of the cases, as a supplemental legal basis in 26%, rejected in 6%, and in a non-substantive way in 58% of the cases.

⁸² Id. See also, Fu and Zhang (2022). They discuss a number of employment and labor-related cases involving Party organs, finding in general that “legal rules are deemed to apply and courts to have jurisdiction over cases where the plaintiffs are contract workers, while in employment disputes involving civil servants and Party officials where substantial tenure is involved, the [Labor Contract Law] and the court cede jurisdiction to the political process,” thus finding Party organs liable for violations of labor contracts and the terms of the Labor Contract Law but not for termination decisions that follow the proper procedures of the Labor Contract Law or that involve general policy matters like the mandatory retirement age. They also note the difficulty courts have had dealing with cases involving SOEs given the nature of ownership, the increased roles of Party groups within such firms, and conflicts between Party rules for SOEs and the general principles and specific provisions of state company law. Presumably, these are the types of issues and conflicts that should now be reported and run up the pole for instruction in accordance with the Regulation on the CCP Political-Legal Work.

⁸³ The U.S., for example, provides “absolute civil immunity” from prosecution to legislators engaged in the legislative process; judges acting in their judicial capacity; government prosecutors while making charging decisions; executive officers while performing adjudicative functions; the President of the United States when performing official duties; witnesses testifying in court subject however to perjury limitations, and so on.

A third category is where Party rules or policies are cited as window-dressing to justify whatever outcome the judge or government official was going to reach anyway. For instance, judges or government officials may cite “core socialist values,” which are stated in such broad and abstract terms like “fairness” or “justice” that they can be invoked in any context regardless of the specific issues at hand; the judges can then also cite the legal provision on which the case was actually in their minds decided.⁸⁴ Similarly, judges or officials may nod in the direction of Xi Jinping Thought on Rule of Law or some vague, general principle in Party rules and documents about the need to ensure justice, maintain stability or rejuvenate the nation. It is unlikely that these references or citations would have a significant impact on the substantive decision in most cases, although perhaps they could affect the outcome at the margins in some cases.

A fourth set of cases with more general applicability to the issue of consistency with thin rule of law criteria involves cases where Party rules and policies are cited or invoked as a formal or explicit method of statutory interpretation. That laws and regulations are to be interpreted and implemented in a way consistent with the intent of the body that passed the laws and regulations is a widely accepted principle of statutory interpretation. As the ruling party, “the will of the Party” (reflecting ostensibly the will of the whole people) is transformed into state laws and regulations. In the process, the Party will often issue commentary on the general purposes of the law or regulation or on the meaning and purpose of specific provisions. These commentaries would constitute part of the legislative history. Of course, like all statutory interpretation theories that invoke legislative intent, determining what the “intent” is of a body consisting of multiple different actors with differing views is easier said than done. As such, it does introduce an element of uncertainty into the system and can lead to conflicting interpretations and inconsistent results in practice.

The general approach to statutory interpretation in China has been in the event of uncertainty of the meaning or intent, seek clarification from the body that passed the law, regulation or rule. This was modified somewhat to allow courts to interpret laws in the handling of specific cases, which in theory is limited to clarifying laws without altering their original meaning or intent. Nevertheless, it is possible courts will increasingly need to seek clarification from Party organs given the increased leadership role of the Party in amending the Constitution and transforming the will of the Party into state laws and regulations. The Regulation for political-legal work does seem to require instructions on how “major” issues are to be handled. From a thin rule of law perspective, this would make the law less stable, less predictable, less transparent, and less efficient in terms of timely enforcement.

⁸⁴ These values include freedom, equality, justice, law-based governance, patriotism, dedication to work, trustworthiness, friendliness, civility, harmony, democracy, wealth and strength. There has already been an attempt by the SPC to clarify the role of core socialist values in deciding cases. See SPC Guiding Opinions on Deepening the Integration of Core Socialist Values into the Analysis and Reasoning of Judgments (effective Mar. 1, 2021). When a specific legal provision applies, courts are to first cite the relevant legal provision to explain the holding and then use socialist core values to further clarify the meaning of the law and its legislative purpose. In civil and commercial cases where there is no controlling directly applicable legal provision and the court must turn to customary practices, the courts are to employ core socialist values in explaining their decision and reasoning.

Moreover, Xi has continually emphasized the need to uphold the Party line in interpreting and implementing the law. To be sure, it is one thing to require judges and government officials to interpret and implement laws and regulations in a way that renders them consistent with Party policies and Xi Thought to the greatest extent possible. It is quite another thing to require judges and government officials to set aside laws and regulations when they are inconsistent with Party policies and the latest iteration of Xi Thought. As a formal matter, as we have seen, Xi's socialist rule of law with Chinese characteristics requires judges and state actors to follow the law and prohibits them from setting the law aside when it conflicts with Party rules or policies. Nevertheless, whether this is happening in practice, how often, and in what contexts is an empirical issue for which we lack data. But in the past Party policies prevailed over law in the handling of political cases and politically sensitive cases involving social stability. Arguably, it is even more likely to occur under Xi given his concentration of power and emphasis on ideology, including adherence to Party policies and Xi Thought. What would be needed to show this are "test cases" where the citing of Party rules or policies or Xi Thought produced a clearly different result than what is required by law, accompanied, ideally, by an explicit discussion of how Party rules dictate one outcome, the law another, and then how and why the judge or government official decided or acted based on the Party rules rather than the law. It is unlikely most judges or government officials would be so explicit.

In many other cases, Party policies or Xi Thought might affect or alter the outcome of a case without actually contravening the law. Judges could for example give out heavier punishments than they would have in absence of Party policies that emphasize the need to ensure social stability and national security, and police might broaden the scope of people detained under "residential surveillance at a designated place" based on only a loose nexus to national security, as indeed has been happening.

Ultimately, it is an empirical question to what extent Party rules and policies are actually influencing the interpretation and implementation of laws and regulations. Unfortunately, we do not yet have the empirical evidence to draw firm conclusions. Nor do we have adequate empirical evidence to make judgments about the role of Party groups in state organs and the judiciary, and whether their role has changed significantly in practice under Xi. Nor do we have a clear view of how the new institutions created from the merger of Party and state organs operate, or how decisions are made in cases where Party and state entities share one door with two nameplates.⁸⁵ Similarly, we are only beginning to get a better understanding of what the role of political-legal committees will be.

Nevertheless, it is safe to say that all of these developments are problematic from a thin rule of law perspective. They have decreased transparency, increased uncertainty, and made the system less predictable and stable, at least for the time being. It is possible that over time these concerns will be alleviated as the operating rules

⁸⁵ Another issue is whether the decisions of these merged entities will be reviewable under the Administrative Litigation Law or subject to other forms of administrative and judicial review. It has generally been understood that Party organs were excluded from the scope of "administrative organs and their personnel" of Article 2 of the Administrative Litigation Law and thus could not be named as a defendant.

for intermediating between the Party and state systems are developed both formally and informally in terms of norms, conventions and practices. After all, the current 5-year plan for rule of law only promises “a more complete system of governing the country in accordance with law by 2025.” Then, a mere 10 years later, “by 2035, a rule of law country, a rule of law government, and a rule of law society will be basically completed, a socialist rule of law system with Chinese characteristics will basically have taken shape, the people’s right to equal participation and equal development will be fully guaranteed, and the modernization of the national governance system and governance capabilities will be basically achieved.”⁸⁶ Given the size of China, the damage to the legal system during the Cultural Revolution, and China’s initial low level of wealth, realizing a legal system that scored high on thin rule of law indices in essentially a 50-year period since reforms began in 1978 would be a significant, and most likely historically unprecedented, achievement.

But it is by no means certain that these issues that have arisen during the Xi era will be addressed or, if they are, that they will result in the legal system, or the political-legal system, becoming more consistent with thin rule of law criteria. It is certainly possible that the expanded role and influence of the Party in the daily governance of the state will lead to permanent tensions between the Party and state systems in ways that lead to more inconsistencies, greater unpredictability, and a less stable political-legal system with more arbitrariness. This is all the more likely when one considers the inherent limits to comprehensive rules-based governance and the rule of law as a rule of rules.

3.3 Party-State Socialist Rule of Law as a Rule of Rules

For Xi, rule of law is largely a rule of rules, with little room for discretion and a limited role for norms and conventions, as reflected in the importance attached to “comprehensive rules-based governance” in Xi Thought on Rule of Law. Yet the notion of rule of law as a rule of rules has been subject to many challenges and critiques, which taken collectively suggest that promotion of party-state socialist rule based on the organic unity of a rules-based party system and a complementary rules-based state system may not be the major theoretical and practical breakthrough it is purported to be. In general, a rule-based approach does promote consistency, predictability, and fairness in legal systems, reducing the risk of arbitrary decision-making. Rule of law as the rule of rules emphasizes the importance of clear, precise rules that leave little room for subjective interpretation by judges or government officials.

However, critics of the rule of law as the rule of rules raise concerns about the limitations and challenges of codifying everything in rules. Rules can be over-inclusive or under-inclusive. Accordingly, overly rigid adherence to rules can lead to injustice in situations where the strict application of a rule fails to consider unique circumstances or the spirit of the law. Over time, rules also often become outdated or inadequate for addressing evolving social norms and complexities. Strict adherence to rules may hinder flexibility and innovation, preventing authorities from

⁸⁶ Plan on Building the Rule of Law in China (2020–2025) (chinalawtranslate.com).

effectively addressing novel situations or emerging challenges. Additionally, excessive reliance on rules may contribute to a bureaucratic and legalistic approach that prioritizes procedural compliance over substantive justice. While it is impossible to eliminate all discretion in a complex legal system, given the shortcomings and limitations of rule of law as a rule of rules, it would also be unwise and undesirable to do so.

It is also impossible to eliminate entirely uncodified norms, conventions and practices, which play a significant role in shaping the functioning and effectiveness of the rule of law. Norms, conventions, and practices can either complement or undermine the rule of law, depending on how they interact with formal legal rules. When they align with legal principles, they can reinforce the rule of law by promoting compliance, fostering trust in legal institutions, and facilitating the smooth functioning of the legal system. However, when they do not align with formal legal rules and general legal principles they can undermine the rule of law by undermining the authority of legal institutions and eroding public trust in the legal system.

In China, norms, conventions and practices, including the *nomenklatura* system, have played a large role in intermediating between the Party and state systems in the past, and will likely continue to do so, as discussed above. The question is whether they will reinforce or undermine the rule of law. The fear is that given the expanded role for Party organs and the emphasis on ideology and adherence to Xi Thought, longstanding norms of deference to Party policies and Party officials who have a higher ranking in China's *nomenklatura* system will result in Party policies and preferences in general, and Xi's wishes in particular, trumping state laws and regulations.

In short, to what extent Party-state socialist rule of law will meet thin rule of law criteria is uncertain at this point, but there are ample reasons to be concerned.

Indeed, to what extent Party-state socialist rule of law is intended to serve the purposes and reap the benefits associated with compliance with thin rule of law requirements is uncertain at this point. Among these benefits is securing government in accordance with law—rule of law as opposed to rule of man—by limiting the arbitrary exercise of sovereign power, thereby bolstering the legitimacy of the regime. But while Xi has promoted comprehensive rules-based governance, he has done so in large part to ensure that rank-and-file Party members and state actors comply with central Party policies, over which he exerts outsized influence having consolidated power as the core of the Party. At the same time, he has also emphasized the need for flexibility and adaptability in light of changing circumstances, highlighting it as one of the advantages of China's political system under the leadership of the Party.⁸⁷ Although the distinction can be overdrawn, there is no doubt that one of the fundamental differences between socialist rule of law and liberal democratic rule of law is that the former places more emphasis on the empowering function of law, seeing the

⁸⁷ The Law-Based Governance of China, pp. 58–61 (calling for a balance between reforms and the rule of law, and noting that while reforms need a legal basis, in some cases reforms will need to proceed first and then the legislative framework catch up). See also Seppänen (2021), arguing that the Party's governance project oscillates between rule-based formalism and anti-formalist skepticism, with anti-formalist arguments supporting Party leaders' efforts to maintain and increase the Party's influence over state organs including the judiciary.

rule of law as strengthening the state rather than limiting it. Xi clearly believes that promoting the rule of law will strengthen the Party-state and rejuvenate the nation. At present, the biggest threat to Party-state socialist rule of law is arguably the over-concentration of power in Xi's hands and his ability to dictate policies and outcomes in what some would consider to be an extralegal and arbitrary way.⁸⁸

3.4 Party-State Socialist Rule of Law as an Alternative to Liberal Democratic Rule of Law

The previous sections have focused on Xi's new conception of Party-state socialist rule of law in terms of the core principle of the supremacy of the law and its consistency with thin rule of law criteria. But many legal scholars and critics of the rule of law argue that a thin conception of rule of law is inadequate. The main argument, simply put, is that a thin conception of rule of law is normatively inadequate because a legal system could be fully compliant with thin rule of law requirements and still be radically unjust and evil.⁸⁹ On this view, thin conceptions of rule of law are too focused on the instrumental aspects of law and procedural issues as opposed to substantive issues. Rule of law is not just the rule of any law, but of "good" law—that is, a morally good or just law.

In response, proponents of a thin conception of rule of law, such as the legal philosopher Joseph Raz (1979), argue:

If rule of law is the rule of the good law then to explain its nature is to propound a complete social philosophy. But if so the term lacks any useful function. We have no need to be converted to the rule of law just in order to believe that good should triumph. A non-democratic legal system, based on the denial of human rights, of extensive poverty, on racial segregation, sexual inequalities, and religious persecution may, in principle, conform to the requirements of the rule of law better than any of the legal systems of the more enlightened Western democracies.

⁸⁸ The Regulation on Political-Legal Work, while stopping short of saying that those perceived to be threats to Xi, the Party and national security are to be treated in an extralegal way, does bring back the Maoist distinction between conflicts among the people and conflicts with the enemy, with the latter to be dealt with through the correct exercise of democratic centralism.

⁸⁹ As I have explained in Peerenboom (2002a), while thin and thick versions of rule of law are analytically distinct, in the real world there are no free-standing thin rule of law legal systems that exist independently of a particular political, economic, social and cultural context. Put differently, any legal system that meets the standards of a thin rule of law is inevitably embedded in a particular institutional, cultural and values complex, whether that be Liberal Democratic, Statist Socialist, Neo-authoritarian, Communitarian, some combination of them or some other alternative. While it is not always clear how much of Xi's Thought on Rule of Law is actually Xi's thought, he does seem clear on this point: "Within rule of law there is politics; there is no rule of law that exists outside of politics." An Introduction to Xi Jinping Thought on Rule of Law, p. 209. The explanatory text, quoting Xi's (2015) speech to provincial and ministerial level officials, then adds: "There is a political theory behind every rule of law ideology; there is a type of political logic in every rule of law model; there is a political perspective underneath every rule of law path".

Indeed, most people would have considered the U.S. in the years prior to the Civil War to be an example of the rule of law, notwithstanding the legalization of slavery and laws that imposed harsh criminal punishments on people who helped slaves escape. Similarly, many English would have concurred with A.V. Dicey's positive assessment of England's legal system as the global leader in rule of law even when women were treated as chattel and denied the right to vote.

It is not my purpose here to take a stand on complex philosophical debates about whether rule of law is the rule of good law or to debate the merits of legal positivism versus natural law theories. Suffice it to say that this is well-trodden ground; the distinction between thin and thick conceptions is a central and widely recognized distinction in the rule of law literature; and their respective advantages and disadvantages are clear, even if people disagree or reach different conclusions as to which type is preferable based on their own interests or purposes.

Rather, my goal is to clarify how analytically Party-state socialist rule of law differs from state-socialist rule of law and the globally dominant liberal democratic rule of law.

In my view, Xi's Party-state socialist rule of law differs mainly from what I have referred to as state socialist rule of law, which prevailed in the era of Jiang Zemin and Hu Jintao, in two ways: the more robust role of the Party and the heightened emphasis on ideology, in particular Xi Thought, both discussed at length above. But on the whole its basic value orientations are largely consistent with state socialist rule of law, as can be seen from the chart in "Appendix".

Understood as a competing alternative thick conception of rule of law to the globally dominant liberal democratic rule of law, the contrasts continue to be clear and stark with respect to the nature of the economic system, political system, conception of rights, purposes of rule of law, institutions including judicial independence and the role of the judiciary, rules, and outcomes.

Xi is free to offer up his own thick conception of rule of law and to defend it as most suitable for China at this time given China's current circumstances. He is also free to argue that Party-state socialist rule of law is the best system to ensure that China will be able to meet the ambitious goals he has set of achieving a socialist rule of law country by 2035 and a rejuvenated nation that leads the world in comprehensive national power by 2049. He is even free to argue that his particular conception of rule of law is a normally attractive alternative to liberal democratic rule of law.

Of course, critics of Party-state socialist rule of law with Xi Jinping characteristics are free to argue the exact opposite, at least if they live outside of China and its increasingly expansive extraterritorial reach. Whether China will be able to achieve the lofty goals Xi has set is by no means clear. Assuming China is able to achieve those goals, whether Xi's particular conception of rule of law will have helped or hindered on balance is also uncertain at this point. On the whole, realization of Xi's ambitions depends much more on his substantive policies and strategic choices, particularly with respect to the economy and geopolitics.⁹⁰ The legal system will only

⁹⁰ Despite concentrating power, Xi has failed to exercise that power to change the economic model to deal with structural challenges identified as far back as the Hu era, choosing instead to kick the can down the road. Pettis (2022). See also Rosen and Wright (2024): "To both rebalance the domestic economy

be one factor,⁹¹ although Xi's views on rule of law will affect daily governance in ways that will have a significant impact on people's lives.

In any event, liberal critics will undoubtedly continue to reject on both theoretical and normative grounds Party-state socialist rule of law. Xi and his wolf warrior diplomats can tell China's stories til the cows come home. Party-state socialist rule of law is not going to supplant liberal democratic rule of law as the globally dominant conception any time soon.⁹² To be sure, Xi has limited options at this point.

Footnote 90 (Continued)

and reduce the country's trade surplus, Beijing must encourage consumption in addition to slowing investment in property and infrastructure," but arguing that China is "doubling down on its antiquated growth model," thus "setting itself up for confrontation with both developed and developing economies alike." When Xi has intervened in economic matters, it has often gone badly. Naughton and Boland (2023), arguing that Xi, driven by his "China Dream" of national greatness and a desire for stronger ideological and political hegemony over society and the economy, unleashed a rushed and ill-conceived "regulatory storm" that led to a dramatic destruction in stock market wealth and undermined an implicit bargain between the CCP and private sector based on mutual benefit and restraint. Xi's unwillingness to acknowledge that the highly infectious nature of the Omicron variant would undermine his zero-Covid policy and the failure to take action to prepare for a smooth transition to the next phase led to more harm to the economy and more deaths than necessary. Orr (2023). Xi's aggressive actions in the South China Seas and in other areas have led to a backlash from the U.S. and its allies, and a more confrontational and hostile geopolitical environment. See Pei (2022).

⁹¹ On the relationship between rule of law and economic growth globally and in Asia more specifically, see Peerenboom (2002a, Chap. 10, and 2007, pp. 33–40), and the cites therein. In general, empirical evidence shows that rule of law and economic development are closely related, and tend to be mutually reinforcing, with the relationship between rule of law and GDP being stronger in Asia than globally. But obviously there are many other factors that affect growth, and variation even in the economic models and the roles the legal system has played within Asian countries notwithstanding broad similarities in the East Asian Development Model.

⁹² Nor, strictly speaking, is that the goal. Xi does not expect other countries to adopt Party-state socialist rule of law. That would be impossible given the different political context in other countries. That is one reason why he has begun to emphasize "foreign-related rule of law." In the end, it would be sufficient if Party-state socialist rule of law was accepted as a legitimate conception of rule of law suitable for China. For this, he only need challenge the idea that the globally dominant liberal democratic rule of law is the one and only acceptable thick conception of rule of law—"genuine rule of law." It should also be noted that "foreign-related rule of law" is not an attempt to apply either a thin or thick conception of rule of law to international law. On the ambiguities of "international rule of law," and the difficulty of extending the concept of rule of law developed in the context of sovereign states with enforcement capabilities throughout their jurisdiction to the international order, see generally Zurn et al. (2012). Nor would Xi want to develop a thick conception of international or global rule of law, which would require a complete social-political philosophy that embraces economics and development; global justice; distribution and redistribution issues; human rights; and global governance. China lacks the human resources, institutional capacity and geopolitical weight to promote such a comprehensive vision. But it is unlikely that Xi would want to take on such a project anyway as any such comprehensive vision for global justice would inevitably reduce the power and influence of superpowers and require a more democratic or egalitarian, pluralistic decision-making system. It would also require more material support of less developed countries than Xi is willing to give. In short, it would not be in China's interests. Xi is content with the largely aspirational abstract statements of the three global initiatives, but he does not want to specify them in detail or make them legally enforceable via international institutions beyond China's control.

3.5 The Way Forward: Xi's Options to Promote, Improve and Elevate Party-State Socialist Rule of Law as an Alternative to Liberal Democratic Rule of Law

Xi could respond to critics of Party-state socialist rule of law in a variety of ways. He could follow the advice of some and just give up on rule of law talk and the hopes of persuading China's critics that Party-state socialist rule of law is rule of law, citing Judith Shklar's (1987: 1) snarky rhetorical putdown with its vaguely anti-Western, anti-capitalist overtones: "It would not be very difficult to show that the phrase 'the Rule of Law' has become meaningless thanks to ideological abuse and general over-use. It may well have become just another one of those self-congratulatory rhetorical devices that grace the public utterances of Anglo-American politicians. No intellectual effort need therefore be wasted on this bit of ruling-class chatter."⁹³ But this has become harder to do now that it has become an accepted part of political discourse, embodied in U.N. documents and the international rules-based order, and institutionalized through the efforts of the rule of law promotion industry. Besides, Xi clearly wants the legitimacy that comes from invoking rule of law and to increase China's soft power and standing in the world by flying the banners and beating the drums for his own version of rule of law.

Accordingly, Xi can continue to press on in the belief that the best defense is a good offense, trying to hold the line and insist that socialist rule of law with a robust role for the Party is theoretically coherent and workable in practice. But as we have seen, this has become more difficult as he has consolidated power in his own hands and called for a more expansive leadership role of the Party in all spheres. He also faces the ongoing challenges that the Party's expansive role, including the nomenklatura system, is not fully codified in state law. And there continue to be too many instances where Party policies and Xi's own preferences seem to take precedence over governing in accordance with law, including with respect to what many consider to be grave crimes against humanity in Xinjiang, notwithstanding the efforts to legalize the coercive powers of the Party in recent years (Clarke 2018; Human Rights Watch 2021; Fu 2022).

Indeed, probably the single biggest thing Xi could do to make socialist rule of law more normatively attractive would be to improve China's record on civil and political rights. That, however, does not seem likely. Xi has given no indication that China will be ratifying the ICCPR in the foreseeable future. And he continues to suppress any perceived threats to the authority of the Party, social stability and national security. He has imposed further restrictions on the already limited spheres of freedom of assembly and expression, and cracked down on rights activists advocating constitutionalism, a more robust role for civil society and greater transparency. Regulations have been passed to stop the spread of "rumors" on the Internet, leading to the arrests of prominent bloggers and the closure of many popular blogs. Legal activists

⁹³ In fact, the purpose of Shklar's article was to defend a thick version of liberal democratic rule of law, rejecting along the way not only Hayek's narrow libertarian version of rule of law and Fuller's thin rule of law based on the inner morality of law and the internal perspective of lawyers and judges, but also Dworkin's equal rights based view with Herculean judges front and center, as well as Unger's leftist view of rule of law as an ideological cloak to conceal the injustices of the liberal order.

and human rights lawyers are regularly subject to surveillance and harassment by authorities or increasingly prosecuted for the vague offense of “gathering a crowd to disrupt public order” (Human Rights Watch 2023).

Xi could return to the early efforts of the Deng-Zhao era to separate the Party and state systems, but that does not seem to be in his DNA. He seems to firmly believe that the only way for China to achieve his ambitious domestic and international goals is through the leadership of the Party as laid out in Xi Thought. To paraphrase Margaret Thatcher, “the man’s not for turning.”

He could push forward with reforms, and make Party-state socialist rule of law more compliant with thin rule of law criteria, by codifying the actual role of Party organs and systems, including the role of political-legal committees and the nomenklatura system, into state law. He could create a mega-constitution that explicitly sets out the powers and jurisdiction of Party and state organs at all levels and formalizes institutions for resolving conflicts between the two, perhaps even creating a Party-state constitutional court to decide jurisdictional issues, and whether a Party rule is inconsistent with the Constitution or a state law, and what should be done about it. He could pass a regulation codifying a “political question doctrine” that sets out broad standards for what counts as a political question to be decided by the Party through political processes.⁹⁴ Legal theorists, particularly those of the legal positivist persuasion, might celebrate such reforms as progress on thin rule of law terms, or at least as evidence of a turn toward “legality.” But greater compliance with thin rule of law requirements and more illiberal legality would not satisfy Xi’s liberal democratic critics, who would continue to bash Party-state socialist rule of law on normative grounds for restricting civil and political rights.

Similarly, Xi could task his team of legal scholars and theorists with developing new defenses of socialist rule of law or new criticisms of liberal legality and liberal democratic rule of law. For instance, Chinese legal scholars could mount a frontal attack on the idea that the core principle of rule of law is the supremacy of the law and that the primary purpose of rule of law is to impose meaningful restrictions on sovereign power and state actors.⁹⁵ In so doing, they could try to develop Hu’s notion of the Three Supremes in a more sophisticated way. They could also develop further the argument that strengthening the state is a perfectly legitimate and widely accepted function of law and should be acknowledged as a core purpose of rule of

⁹⁴ The political question doctrine is a jurisdictional rule in the U.S. that excludes certain issues from judicial review because the issues are essentially political in nature and thus should be addressed through a political process. See political question doctrine | Wex | US Law | LII / Legal Information Institute (cornell.edu). This would respond to some extent to the claim that the shifting of what were previously matters for the state to the Party, and the Party’s role in handling certain “politically significant” cases directly or indirectly through political means, has led to a prerogative state that acts in an unlimited, extralegal, arbitrary way (Fu 2022). The Regulation on CCP Political-Legal Work already sets out a list of “major issues” for which input from the Party is required. But this is a Party rule, not a matter of state law.

⁹⁵ “The Rule of Law” must also keep up with the times. Chinese scholars could join the global effort to make a novel contribution to the rule of law field by emphasizing the threat to individual liberty today coming from the private sector, large corporations and the uber-wealthy that exert outsized influence over people’s choices and the political system. See, e.g., Piketty (2014), Freeland (2012), Mayer (2016) and Zuboff (2019).

law, as is ensuring and maintaining social order and stability. In conjunction, they could question what it means to impose “meaningful” limits on state power, arguing that what constitutes “meaningful” is contested in theory and varies widely in practice, with all legal systems falling short to some degree and in different ways, developing further the arguments of the critics of liberal legality regarding the state of exception in a broader and more generalized way, and drawing on the law and politics literature to show a more complicated relationship between the two than in the simplistic civics textbook version of rule of law. With respect to how to square the leadership role of the Party with rule of law principles, and how to reconcile the actual status of Party rules vis-à-vis state laws and regulations, they could engage in some fancy theoretical footwork, arguing that the traditional rule of law understanding is too positivist and formalistic, and try to take Hart’s idea of a legal system’s rule of recognition as a social practice, a matter of what legal actors accept as valid rules from an internal point of view, and run with it. They could then press the argument that the formal and informal roles of Party institutions along with the practices, norms and conventions for intermediating between the Party and state systems are part of China’s living constitutional order, further developing the line taken by Backer and Jiang. In support, they could draw on the law and society literature on norms to argue for a more sociological understanding of the question “what is law” that might help explain—or explain away—some of the issues that have arisen with respect to Party rules and policies in interpreting and implementing the law.

But even if all of these theoretical efforts panned out and were taken seriously by other legal theorists, the reality is that most people are not legal theorists. Most people could care less if Xi Jinping Thought on Rule of Law is a groundbreaking refinement of Hart’s social practice conception of a rule of recognition and an interesting new contribution to the literature on alternative thick conceptions of rule of law. They would continue to reject Party-state socialist rule of law because it’s not their grandma’s rule of law—it’s not the liberal democratic rule of law that they are vaguely familiar with from their civics textbooks and prefer on normative grounds. They would still see China as an authoritarian regime that systematically denies Chinese citizens fundamental rights and thus dismiss all the talk about socialist rule of law and legal reforms as nothing more than the desperate gaslighting of a despotic regime trying to cover up the shortcomings of a morally inferior system of rule by law.

At the end of day, the superiority or inferiority of Party-state socialist rule of law turns on substantive normative disagreements that can only be debated and defended as a matter of ethics and social and political philosophy. Xi can send out his defenders of socialist rule of law to give speeches at the U.N. and engage in debates about rule of law with their liberal democrat counterparts at international conferences and in law journals. But no amount of technical debate about the finer points of what constitutes rule of law is going to get the results he wants. Rule of law is the wrong battlefield on which to make a stand if Xi hopes to increase China’s soft power.

At best, if China continues to grow, avoiding the so-called middle-income trap and raising the living standards of Chinese citizens, and the legal system continues to improve and move up the ranks of rule of law indices, liberal critics might begrudgingly acknowledge the progress—much as Singapore under Lee Kuan Yew

earned the begrudging respect of many liberal critics when Singapore achieved high-income status and topped the charts for rule of law and good governance, although to be sure many liberal critics continued to describe Singapore as an authoritarian or semi-democratic regime with a legal system best characterized as rule by law.⁹⁶ In any event, for China, that day remains a long way off. Whether China will ever get there seems increasingly unlikely given economic and demographic headwinds and other challenges including a more complicated geopolitical environment that no longer is as supportive of China's rise as it was when Deng Xiaoping announced that China had opened up to the world and the reform process had begun.⁹⁷

In sum, Xi Jinping Thought on Rule of Law is not likely to achieve the international goals he is hoping for in providing a sufficiently normatively compelling alternative to liberal democratic rule of law to increase China's soft power or get the liberal critics off his back.

To be sure, liberal democracy has its own critics. The current state of many democracies, including democracies in high-income states, has clearly left people frustrated and willing to consider alternatives. In recent years, citizens in many democratic states have elected authoritarian leaders who have weakened the institutions and undermined the norms, practices and conventions that support liberal democracies, opting instead for a system of "autocratic legalism" (Scheppelle n.d.; Bodnár et al. 2024). In the U.S., a plurality of citizens re-elected the twice-impeached convicted felon Donald Trump who had stood by and watched as his supporters stormed Capitol Hill in a desperate attempt to resist the peaceful transfer of power after losing the election in 2020. This time around, Trump promised to act like a dictator on day one if elected, seeking retribution against his political opponents, including Senator Nancy Pelosi and the "radical left," who he characterized as "the enemy within". Since taking office, he has made good on his promise, attacking lawyers, law firms and officials that sued or prosecuted him in the past; suing media companies and threatening universities that he perceives as hostile or supportive of a liberal "woke" agenda; attacking the alleged "deep state" by downsizing the federal government; revoking security clearances for Joe Biden, Kamala Harris and Hilary Clinton and terminating secret service protection for Dr. Anthony Fauci and his own former cabinet advisers John Bolton and Mike Pompeo who criticized him after they left office. He has also issued numerous executive orders and taken many actions that have been challenged in court and blocked by judges, leading to concerns about a constitutional crisis.

⁹⁶ See Peerenboom (2007, p. 62), noting Singapore's legal system ranked in the 99th percentile in 1996, much higher than low 90s ranking of the U.S. and the average of OECD countries.

⁹⁷ The Party's legitimacy domestically rests on two pillars: the first is performance-based, the result of strong economic performance, rising living standards and social stability; the second is an appeal to nationalism. The Party cannot rely on an appeal to Chinese nationalism internationally. Thus, the Party must stake its claim on its performance. While many will no doubt find China's domestic economic performance impressive, they will ultimately assess China on its performance in the global arena. Thus, if Xi wants to make China's foreign-related rule of law more globally appealing he would do well to close the yawning gap between the rhetoric and lofty goals of the three global initiatives and China's actual actions on the international stage.

Nevertheless, despite democratic decline in many countries, most citizens globally do not wish for a return to authoritarianism, much less the type of political order in China today where power has been concentrated in the hands of a single person,⁹⁸ with General Secretary Xi abandoning collective leadership in favor of a cult of personality that Deng Xiaoping warned against and most Chinese citizens thought with the passing of Mao they would never see again. It bears noting that the vision in the three global initiatives proposed by Xi is decidedly more pluralistic and tolerant of diversity than Xi is in his approach to domestic politics, where conformity with Xi Jinping Thought is compulsory.⁹⁹

On the domestic front, Xi has consolidated power, reshaped the Party to better suit his purposes, and made Xi Jinping Thought on Rule of Law and pretty much everything else the only acceptable ideology for not only Party and state officials but academics and the general public as well. Of course, it is doubtful that he has really succeeded in unifying thought to such an extent. Surely many people dutifully attend the mandatory study sessions, go through the motions of self-criticism to rectify their thoughts and actions and align them with Xi's latest speech, and then just get on with their lives, believing what they believe. But for now, and into the indefinite future, there is no escape from Xi Thought on Rule of Law.

4 Conclusion

Rule of law is an “essentially contested concept.” It means many very different things to many very different people, and has served a wide variety of political agendas, from Hayekian libertarianism to Rawlsian social welfare liberalism to Lee Kuan Yew's soft authoritarianism to Jiang Zemin's state socialism. That is both its strength and its weakness. That people of vastly different political persuasions all want to take advantage of the rhetorical power of rule of law keeps it alive in public discourse, but it also leads to the worry that it has become a meaningless slogan devoid of any determinative content.

General Secretary Xi has now offered up a new conception of the rule of law. Party-state socialist rule of law is still socialist rule of law, substantially similar in its value orientations to state socialist rule of law. But in Xi's rule of law, the Party with Xi as the core is front and center and firmly in command. Gone is the assumption, or at least the hope of some, that over time the state would take on more responsibilities for daily governance, with the Party retreating into the shadows and playing the more circumscribed role of ruling parties elsewhere.

⁹⁸ See, e.g., Do Africans want democracy—and do they think they're getting it?—Afrobarometer (finding that while only 43% of Africans are satisfied with democracy, 82% reject one-man rule, 77% reject one-party rule, and 69% prefer democracy to any other form of government).

⁹⁹ Erie (2023b) argues that while China is promoting a foreign-related rule of law that is ecumenical, pluri-legal, and hyper-diverse, its domestic law remains unitary, homogenous, and state-led, and suggests that the difference in the two orders is not sustainable. He also notes that although the CCP claims to offer a more decolonized developmental model based on mutual respect, equity and justice, it has “implemented settler colonialism in Xinjiang” and may be adopting many of the same legal weapons as European colonial powers in dealing with other developing countries.

Although the formal relationship between the Party and the state has not changed as a matter of law, notwithstanding the incorporation of the leadership role of the Party into the body of the Constitution rather than just the preamble, how the Party and state systems interact in practice has changed considerably. We are only beginning to understand the process and lack empirical data on many aspects that will go a long way toward confirming whether Xi's Party-state socialist rule of law is a step forward or a step backward. In the short term, many of the changes involving the intermediation of the Party and state systems will increase uncertainty and make the legal system less stable, less transparent, less predictable and less efficient. Whether over time the rules are worked out in a way that complies with thin rule of law criteria or other indicia of rule of law remains to be seen.¹⁰⁰

More fundamentally, Xi's new conception of rule of law is based on comprehensive rules-based government, but the limits of conceiving of rule of law as a rule of rules are well-known. And while Xi clearly hopes that the articulation of an increasingly dense network of rules will cage lower-level Party members and state officials, ensuring their compliance with Xi Thought and central Party policies, it remains to be seen whether the biggest dragon of them all will be caged. Having consolidated power, Xi apparently intends to use it to the fullest to ensure the realization of his China Dream of rejuvenating the nation and eventually leading the world in comprehensive national strength and international influence.

Xi hopes that by telling China's story about socialist rule of law with Chinese characteristics he will increase China's soft power and global reputation, and that his conception of rule of law will if not supplant the globally dominant liberal democratic rule of law, at least be able to co-exist with it as equals. But there is very little chance that he will succeed in this endeavor, at least not until China achieves his ambitious economic and geopolitical goals, and even then, only if the gap between China's actions abroad and the lofty rhetoric of the three global initiatives is narrowed substantially, and civil and political rights are taken more seriously at home. In the meantime, liberal critics, and many Chinese citizens and rank-and-file legal

¹⁰⁰ Data from the World Justice Project shows rule of law holding steady during the Xi era when looked at in aggregate, but with China ranking only 33rd out of forty-one upper-middle income countries. It outperforms the global average and relative to income level on *control of corruption* and *order and security*; it underperforms the global average and relative to income level on *constraints on government and open government*; it is about average globally on *regulatory enforcement* but outperforms relative to income level; and it is about average both globally and relative to income level with respect to *civil justice* and *criminal justice*. The main outlier is with respect to *fundamental rights*, where it is well below the global average and at the very bottom of its income group. Looked at in terms of trends over time, constraints on government power and open government have slowly but steadily declined under Xi; corruption, order and stability, regulatory enforcement, and criminal justice have all remained steady; there has been a slight improvement in civil justice, and further deterioration in fundamental rights. WJP Rule of Law Index | China Insights (worldjusticeproject.org). China's low aggregate score reflects the inclusion of civil and political rights in the index as part of fundamental rights, as well as the exclusion of other types of rights that many would also consider to be fundamental, for which China outperforms relative to income level. These include women's rights, and social and economic rights, such as poverty, health and education as measured by the UNDP's Human Development Index. See Peerenboom (2007). As often noted, rule of law means different things to different people, and debates about competing thick conceptions of rule of law tend to be debates about too many things at once.

sector actors, will continue to reject socialist rule of law on normative grounds in favor of liberal democratic rule of law.

Appendix

Type of legal system	Economic regime	Political regime	Rights	Purposes of rule of law	Institutions/practices	Rules
Liberal Democratic	"Free market" Minimal government interference and regulation Clear distinction between public and private Administrative discretion limited	Democratic elections at all levels Neutral state Limited state Civil society as independent of state	Liberal Emphasis on civil and political Deontological view of rights as antimajoritarian trump on social good Freedom privileged over order Autonomy over social solidarity and harmony Freedom of thought and right to think over need for common ground and right thinking on important social issues More attention to rights than character-building, virtues and duties	Limited government Prevent government arbitrariness Protect individual rights Predictability and certainty: economic growth, allow individuals to plan affairs Dispute resolution, protect property rights largely through formal legal system Government efficiency and rationality Legitimacy	High degree of separation between law and politics Independent and elected legislature Autonomous and independent judiciary, with life tenure for judges, appointment and removal relatively non-politicized Administrative law: mechanisms for reining in discretion, capable of holding even top leaders accountable; public participation; public can hold government officials accountable by throwing government out of office Independent legal profession	Protection of civil and political rights; no registration requirements for social groups; strong rights to protect accused in criminal cases

Type of legal system	Economic regime	Political regime	Rights	Purposes of rule of law	Institutions/practices	Rules
State Socialist	Socialist market economy Much government regulation of and intervention in markets Public-ownership; big role for SOEs (and under Xi promotion of national champions and dual emphasis on economic growth and economic security)	Single party rule, no elections or only at lowest levels Reject neutral state Much larger role for state No or very limited civil society, high level of corporatist or clientelist relations with government, hard or statist form of corporatism	Emphasis on subsistence, economic growth at expense of rights (liberty tradeoff) State sovereignty Utilitarian or pragmatic conception of rights Rights as grant from state Stability and order Social solidarity and harmony over autonomy State prefers unity of thought to freedom of thought, right thinking to right to think; tendency to exercise strict thought control if possible; at minimum, strict limits against attacks on ruling party; emphasis on thought work to ensure common ground and consensus on important social issues Attention to character-building, virtues and duties as well as rights	Emphasis on strengthening state Stability Predictability and certainty: economic growth Law as way of enhancing government efficiency and rationality Dispute resolution, property rights protected through formal and informal mechanisms, more reliance on corporatist and clientelist ties Legitimacy Some limits on state: Government must act in accordance with law, but accept limits begrudgingly Prevent government arbitrariness Protect individual rights, but not priority and limited view of rights	Moderate to low separation between law and politics Legislature not elected; Party influence on law-making process Functional independence of judiciary; no interference by other branches; courts as independent as opposed to judges, so adjudicative supervision; arguably likely to decide cases based on substantive normative principles defined by state; regime wants courts to serve Party interests Legal profession: subject to political requirements, partial independence, mainly due to corporatist nature of relationship with MOJ Administrative law: more discretion; more responsive to Party policy; system imposes weak limits on top leaders, limited public participation in rule making, interpretation and implementation; limited ability for media and public to monitor	Broad laws to protect state; state secrets; endangering state; Illiberal laws: limit civil society, freedom of expression; registration of social groups; or privilege group—no exclusion of tainted evidence; administrative penalties such as re-education through labor

Funding None.

Declarations

Conflict of interest I was one of the founding editors of this journal from 2009 to 2014 or so. I have worked and collaborated in one way or another with several of the authors who will be contributing to this special volume, all of whom I have invited to contribute. Chen Jianfu and I were colleagues at La Trobe University. Fu Hualing has contributed to other volumes I have edited. Susan Finder worked at Freshfields in Hong Kong around the time I was at Freshfields in Beijing. But there is no personal or professional conflict of interest with respect to my own contribution to this volume or with respect to the participation of the other contributors, all of whom are leaders in the field and experts in the areas they are writing about. I have made no promises with respect to publication of their submissions and informed them of the journal's policies with respect to the review process.

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